MONARCH FACTORY BUILDING

INSPECTION REPORT

August 16, 2013



5 Delevan Street, 19 Delevan Street, 14 Verona Street Brooklyn, N.Y. 11211

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CODE REFERENCES AND ABBREVIATIONS

For the purposes of the report, codes and references will be abbreviated as follows:

Americans with Disabilities Act:	'ADA'
1968 Building Code of the City of New York:	'BC'
Certificate of Occupancy:	'C of O'
New York City Department of Environmental Protection	'DEP'
New York State Division of Housing and Community Renewal:	'DHCR'
New York City Department of Buildings:	'DOB'
NYC Department of Health and Mental Hygiene:	'DOH'
Housing Maintenance Code of the State of New York:	'HMC'
International Building Code:	'IBC'
Local Law 58/1987 of New York:	'LL 57/87'
Multiple Dwelling Law of the State of New York:	'MDL'
New York State Multiple Residence Law:	'MRL'
Not Applicable	'N/A'
National Electrical Code:	'NEC'
National Fire Protection Association:	'NFPA'
New York State Public Service Law:	'PSL'
Reference Standards of the 1968 NYC Building Code:	'RS'
Zoning Resolution of the City of New York:	'ZR'
2002 Energy Conservation Code of New York State:	'2002 ECCCNYS'
When a specific code section is cited from any code referenced above, it will be preceded by the symbol:	'§'

The 'Building' shall refer to the Monarch Factory at 5 Delevan, 19 Delevan and 14 Verona Street in Red Hook, Brooklyn New York.

The 'Building' occupancy is classified as 'J2' per the 1968 NYC Building Code.

BC §27-265

Occupancy group J-2.- *Shall include buildings with three or more dwelling units that are primarily occupied for the shelter and sleeping accommodation of individuals on a month- to-month or longer-term basis.*

HOW TO READ THIS REPORT

Building inspection observations and applicable notes are outlined in a single line black box.

Code References and Section Titles are in Bold Italics.

Body text of the cited Code Section is in Normal Italics.

Relevant information in the Code text is in Normal Italics, Highlighted in yellow.

SUMMARY

This report contains information about the existing physical conditions at the Monarch Factory at 5 Delevan Street, 19 Delevan Street, 14 Verona Street Brooklyn, N.Y. 11211. Building and apartment systems were inspected, analyzed, documented and referenced to local, state and federal codes. This analysis is based on visual inspections only.

It is our opinion that the building does not meet the criteria for substantial rehabilitation as outlined by the DHCR Operational Bulletin 95-2.

It is our opinion based upon the following report that:

- ONLY Intercoms and Fire Escapes meet the criteria for substantial rehabilitation.
- **12%** (or 2 of 17) of the systems **MEET** DHCR requirements for substantial rehabilitation.
- **82%** (or 14 of 17) of the systems **DO NOT MEET** DHCR requirements for substantial rehabilitation.

Building or Apartment wide System	Completely Replaced or made New?	Is the System to Code?	Does it meet DHCR Criteria?
Plumbing	**NO**	**NO**	**NO**
Heating	**YES**	**NO**	**NO**
Gas Supply	**YES**	**NO**	**NO**
Electrical Wiring	**YES**	**NO**	**NO**
Intercoms	**YES**	**YES**	**YES**
Windows	**YES**	**NO**	**NO**
Roof	**NO**	**NO**	**NO**
Elevators	**NO**	**NO**	**NO**
Incinerators or Waste Compactors	N/A	N/A	N/A
Fire Escapes	**YES**	**YES**	**YES**
Interior Stairways	**NO**	**NO**	**NO**
Kitchens	**NO**	**NO**	**NO**
Bathrooms	**NO**	**NO**	**NO**
Floors	**NO**	**NO**	**NO**
Ceilings & Wall Surfaces	**NO**	**NO**	**NO**
Pointing or Exterior Surface Repair as Needed	**YES**	N/A	**NO**
All Doors & Frames including the replacement of non-fire rated items with fire-rated ones.	**NO**	**NO**	**NO**

BUILDING DIAGRAM & INFORMATION

The four structures that have been annexed to form the 'Building' were constructed prior to 1929, originally as Manufacturing facilities and converted to Commercial Lofts in 1999 and subsequently designated a Multiple Dwelling in 2005.

In the year 2000, construction began in 'Wing A' for Commercial Lofts. The commercial lofts were never converted to residential dwelling units. Individual tenants in 'Wing A' were advised by the owner to install their own cooking equipment and bathing facilities.

A Certificate of Occupancy for residential use was granted by DOB in 2005 for the combined building.

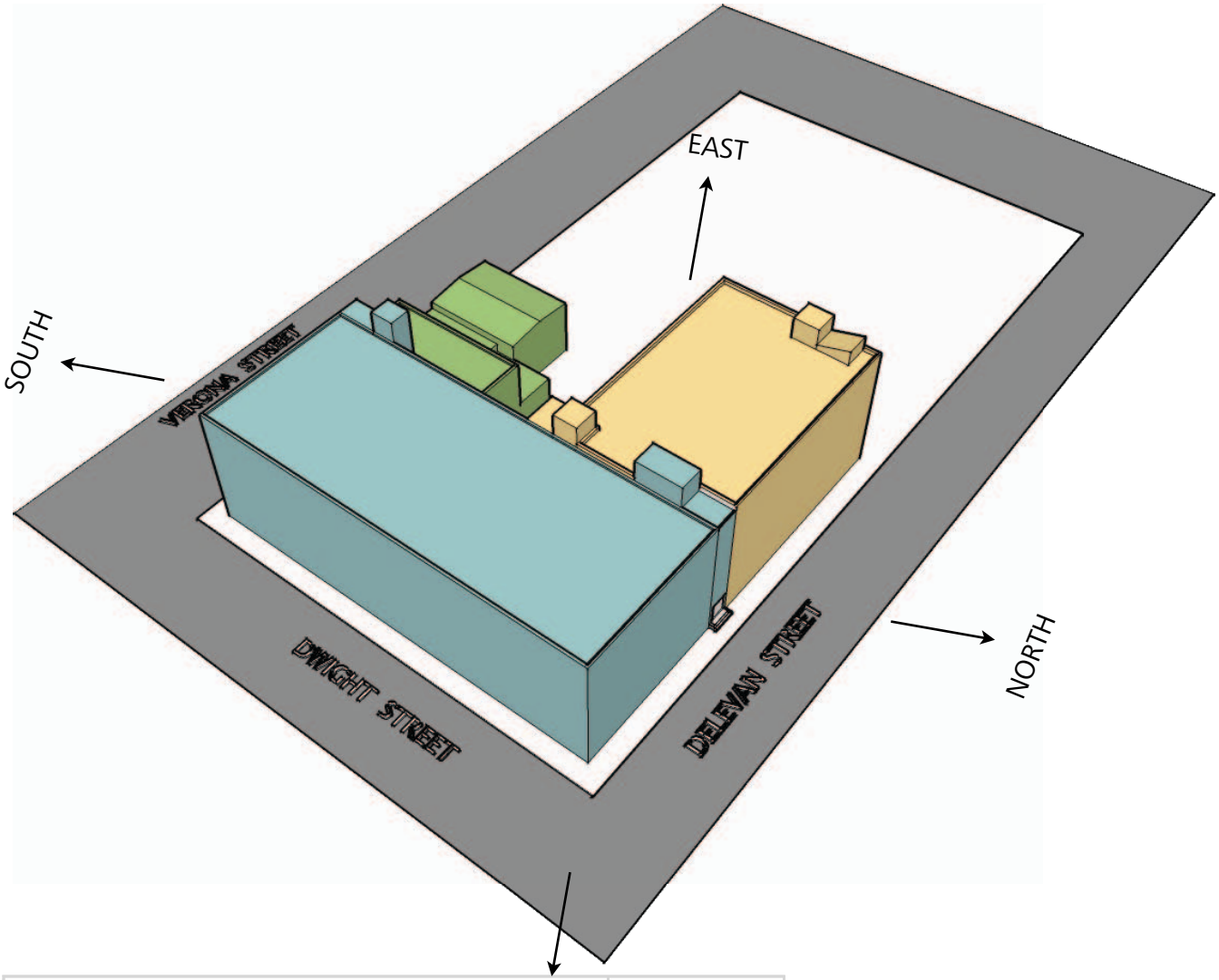


DIAGRAM LEGEND		
	WING A - 4 Stories, 40 Dwelling Units	
	WING B - 4 Stories, 42 Dwelling Units	
	WING C - 2 & 3 Stories, 18 Dwelling Units	

DHCR OPERATIONAL BULLETIN 95-2

Operational Bulletin 95-2

New York State
Division of Housing and Community Renewal
Office of Rent Administration

Operational Bulletin 95-2 (December 15, 1995)

Substantial Rehabilitation

This Operational Bulletin is issued pursuant to the Emergency Tenant Protection Regulations (TPR) adopted under the Emergency Tenant Protection Act (ETPA) section 10, and section 2527.11 of the Rent Stabilization Code (RSC). It sets forth the position of the Division of Housing and Community Renewal (DHCR) regarding the circumstances under which the agency will find that a building has been substantially rehabilitated within the meaning of TPR section 2500.9(e) and RSC section 2520.11(e).

It is being issued at this time to clarify the procedures the agency will use to determine issues of exemption from rent regulation due to substantial rehabilitation. The agency has not previously issued any formal directive or clarification on this subject and the lack of such guidance has made it difficult for applicants to have an understanding of how an application for exemption will be treated. Also, potential applicants have indicated that uncertainty about our procedures could contribute to an unwillingness to undertake substantial rehabilitation projects in deteriorated buildings. Accordingly, lack of clear procedures works to prevent use of this mechanism as intended in law and regulation.

Also, this Operational Bulletin takes into account court decisions related to substantial rehabilitation exemptions. In particular, it recognizes a recent court decision wherein it was found that a building did not have to be completely vacant to qualify for the exemption, and wherein it was ruled that the agency could not interpret "substantial" to mean total reconstruction of the building.

ETPA section 5(a) (5) provides as follows:

Housing Accommodations Subject to Regulation

A. A declaration of emergency may be made pursuant to section three as to all or any class or classes of housing accommodations in a municipality, except:

(5) housing accommodations in buildings completed or buildings substantially rehabilitated as family units on or after January first, nineteen hundred seventy-four;

These provisions of section 5(a) (5) were incorporated into both TPR section 2500.9(e) and RSC section 2520.1l(e).

This document is being reissued for informational purposes only.

The original document which contains signatures of authorization is on file at DHCR's Office of Rent Administration.

Reissued 9/97

I. Criteria

DHCR will find that a building has been substantially rehabilitated within the meaning of TPR section 2500.9(e) and RSC section 2520.11(e), and is therefore exempt from coverage under the ETPA or the RSL, for rent stabilized properties where the owner demonstrates, based upon the totality of the circumstances, that the following criteria have been met:

A. At least 75% of the building-wide and apartment systems contained on the following list must each have been completely replaced with new systems. Additionally, all ceilings, flooring and plasterboard or wall surfaces in common areas must have been replaced; and ceiling, wall, and floor surfaces in apartments, if not replaced, must have been made as new as determined by DHCR.

List of Building-wide and Apartment Systems:

1. Plumbing
2. Heating
3. Gas supply
4. Electrical wiring
5. Intercoms
6. Windows
7. Roof
8. Elevators
9. Incinerators or waste compactors
10. Fire escapes
11. Interior stairways
12. Kitchens
13. Bathrooms
14. Floors
15. Ceilings and wall surfaces
16. Pointing or exterior surface repair as needed
17. All doors and frames including the replacement of non-fire-rated items with fire-rated ones

However, for good cause shown, on a case-by-case basis, limited exceptions to the stated criteria regarding the extent of the rehabilitation work to be effectuated building-wide or as to individual housing accommodations may be granted where the owner demonstrates that a particular component of the building or system has recently been installed or upgraded so that it is structurally sound and does not require replacement, or that the preservation of a particular component is desirable or required by law due to its aesthetic or historic merit.

B. The rehabilitation was commenced in a building that was in a substandard or seriously deteriorated condition. The extent to which the building was vacant of residential tenants when the rehabilitation was commenced shall, in addition to the items described in III "Documentation", constitute evidence of whether the building was in fact in such condition. Where the rehabilitation was commenced in a building that was at least 80% vacant of residential tenants, there shall be a presumption that the building was substandard or seriously deteriorated at that time.

Space converted from nonresidential use to residential use need not meet this standard.

C. DHCR will not find the building to have been substantially rehabilitated if it can be established that the owner has attempted to secure a vacancy by an act of arson resulting in criminal conviction of the owner or the owner's agent, and/or DHCR has made an outstanding finding of harassment, as defined pursuant to any applicable rent regulatory law, code or regulation.

D. All building systems comply with all applicable building codes and requirements, and the owner has submitted copies of the building's certificate of occupancy before and after the rehabilitation.

E. The Substantial Rehabilitation provision is intended to encourage the creation of new or rehabilitated housing. Accordingly, in making a determination as to the eligibility of a building for this exemption, DHCR will consider all facts that support this policy.

F. Where occupied, rent regulated units have not been rehabilitated, such units shall remain regulated for the duration of occupancy by the regulated tenants, notwithstanding a finding that the remainder of the building has been substantially rehabilitated and qualifies for exemption from regulation.

II. Prior Opinion

DHCR recognizes the very significant financial commitment that a substantial rehabilitation necessitates. Accordingly, an owner may apply to DHCR for an advisory prior opinion that the building qualifies for the exemption, based upon the owner's rehabilitation plan, which as evidenced by contracts, applications for building permits, blueprints, etc., meets the scope of work necessary to constitute substantial rehabilitation. Although they may do so at any time prior to commencement of the rehabilitation, owners are encouraged to apply for an advisory prior opinion at or about the time that they seek appropriate governmental approval for the rehabilitation work.

III. Documentation

The following documentation will be required from owners in support of a claim of substantial rehabilitation.

Records demonstrating the scope of the work actually performed in the building. These may include an itemized description of replacements and installations, copies of approved building plans, architect's or general contractor's statements, contracts for work performed, appropriate government approvals, and photographs of conditions before, during, and after the work was performed. Proof of payment by the owner for the rehabilitation work may be required; owners are advised to maintain records related to the rehabilitation. For rehabilitation projects completed before issuance of the Operational Bulletin, where undue hardship or prejudice would otherwise result, consideration will be given to the documentation which may be required.

IV. "Constructive Occupancy" by Rent Stabilized Tenants in Substantially Rehabilitated Buildings

In certain cases, because of the existence of hazardous conditions in their rent stabilized housing accommodations, e.g., fire damage, some rent stabilized tenants may be ordered by a governmental agency to vacate the housing accommodation. Such vacate order may create a "constructive occupancy," providing for payment by the tenant of a nominal rental amount such as $1.00 per month, while the vacate order is in effect, and permitting the tenant to resume occupancy without interruption of his or her rent stabilized status, upon restoration of the housing accommodation to a habitable condition. Where the building has been substantially rehabilitated, constructive occupancy will have the effect of excepting the housing accommodation from exemption from rent regulation based upon such rehabilitation.

However, the exemption from rent regulation based upon substantial rehabilitation will apply to all housing accommodations in the building which are not "constructively occupied" or actually occupied by a previously rent regulated tenant. In addition, the exemption will also apply to a constructively occupied housing accommodation if the returning tenant subsequently vacates, or if the tenant who is entitled to return pursuant to court or DHCR order chooses not to do so.

V. Individual Apartment Improvements, Major Capital Improvements, and First Rents Distinguished from Substantial Rehabilitation

Where the work performed fails to meet the criteria set forth above for exemption from coverage under the ETPA or RSL on the basis of substantial rehabilitation, the owner may still qualify for rent increases based upon work performed on building-wide systems or in individual apartments.

In the event a substantial rehabilitation exemption is not found, the improvements will be considered for an MCI order provided the substantial rehabilitation application was made within two years of the completion of the work, and all MCI filing criteria are met.

It should be noted that the term "substantial rehabilitation" as utilized in TPR sections 2502.4(a) (1) and 2502.(a) (2) (ii), refers to work that is in the nature of an individual apartment improvement or a major capital improvement, which are discussed below, and not to that type of substantial rehabilitation which results in the exemption of an entire building from rent stabilization. It is the latter which is the subject of this Operational Bulletin.

Individual Apartment Improvements: TPR section 2502.4(a) and RSC section 2522.4(a)(1) provide for an increase in the rent of an individual housing accommodation where there has been a substantial increase in dwelling space, or an increase in the services, or the installation of new equipment or improvements, or new furniture or furnishings provided in or to such individual housing accommodation.

Major Capital Improvements: TPR section 2502.4(a) and RSC section 2522.4(a) (2) permit owners to apply for an increase in legal regulated rents, based upon the proven costs of building-wide major capital improvements.

First Rents: Where an owner significantly changes the perimeter and dimensions of an existing housing accommodation, or creates a housing accommodation in space previously used for nonresidential purposes, the DHCR may find that the resultant housing accommodation was not in existence on the applicable base date. Such a finding may entitle the owner to charge a market or"first rent," subject to guidelines limitations for future rent adjustments.

VI. Binding Determination

Where, after completion of the work, DHCR issues a final order determining that the building is exempt from rent regulation on the basis of substantial rehabilitation, that order will be a binding determination on a building-wide basis, not withstanding occupancy by subsequent tenants. DHCR will not thereafter entertain challenges by subsequent tenants except upon showing that the determination was obtained as a result of fraud by the owner or the owner's agent.

Paul A. Roldan
Deputy Commissioner
for Rent Administration

Reissued 9/97

TIMELINE

YEAR / DOB Job #	DESCRIPTION	OCCUPANCY
1999 DOB Job # 300959791	The NYC Department of Building records show that in 1999 Wing A was renovated to commercial lofts from 'Open Plan' Manufacturing. This means they filed to install partitions in the open floor plan to create multiple commercial lofts. Prior to this filing, the entire building was derelict condition.	All Wings Vacant and in dis-repair
2000	Commercial Lofts in Wing A were rented to the first tenants who resided in the building under commercial leases. Tenants were advised to install their own showers and cooking equipment prior to signing leases.	Wing A: Residential tenants under commercial leases Wing B & C: vacant and in dis-repair
2002	NYC Department of City Planning re-zones Brooklyn block 523 from an M-1 to an R-6 Zone, allowing the building to seek designation as a multiple dwelling.	Wing A: Residential tenants under commercial leases Wing B & C: vacant with ongoing construction
2001-2003	Wings B & C renovated as Commercial Lofts	Wing A, B & C: Residential tenants under commercial leases
2004 Job # 301357742	NYC DOB issues 1st of several Temporary C of O's for a multiple dwelling.	Wing A, B & C: Residential tenants under commercial leases
2005	NYC DOB issues Final C of O for a multiple dwelling despite the construction not built per DOB approved drawings. Work was not performed within the occupied commercial lofts to convert them to residential use and code violations that are evident eight years later.	Wing A, B & C: Residential tenants under commercial leases.
2005-2013	No Work	Wing A, B & C: Residential tenants under commercial and residential leases.

REVIEW OF "DHCR" Criteria for Substantial Rehabilitation

All building wide and apartment systems were visually inspected and recorded to determine if at least 75% of building-wide and individual housing accommodation systems were replaced during the conversion from a derelict Manufacturing facility to the Residential C of O it obtained in 2005 and whether or not these systems conform to code.

Partially Replaced Systems or Completely Replaced Systems that are Not to Code, Do Not Meet DHCR Criteria.

1. PLUMBING - SYSTEM PARTIALLY REPLACED, NOT TO CODE.

Observations:

A vent pipe outside of apartment #101 is located within 3'-0" of an apartment window facing Verona Street, in violation of BC §P109.4 (e) (f). 10'-0" separation required.

BC §P109.4 Vent Terminals.-

(e) Location of vent terminal.- *(1) No vent terminal shall be located directly beneath any door, operable window, or other ventilating opening of the building or of an adjacent building, nor shall any such vent terminal be within 10 ft. horizontally of such an opening unless it is at least 3 ft. above the top of such opening.*



(2) Vent extensions shall not be run through an exterior wall.

(f) Extensions outside building.- *No soil, waste, or vent pipe extension shall be run or placed on the outside of a wall of any building, unless such exterior installation on penthouses is permitted by the commissioner.*

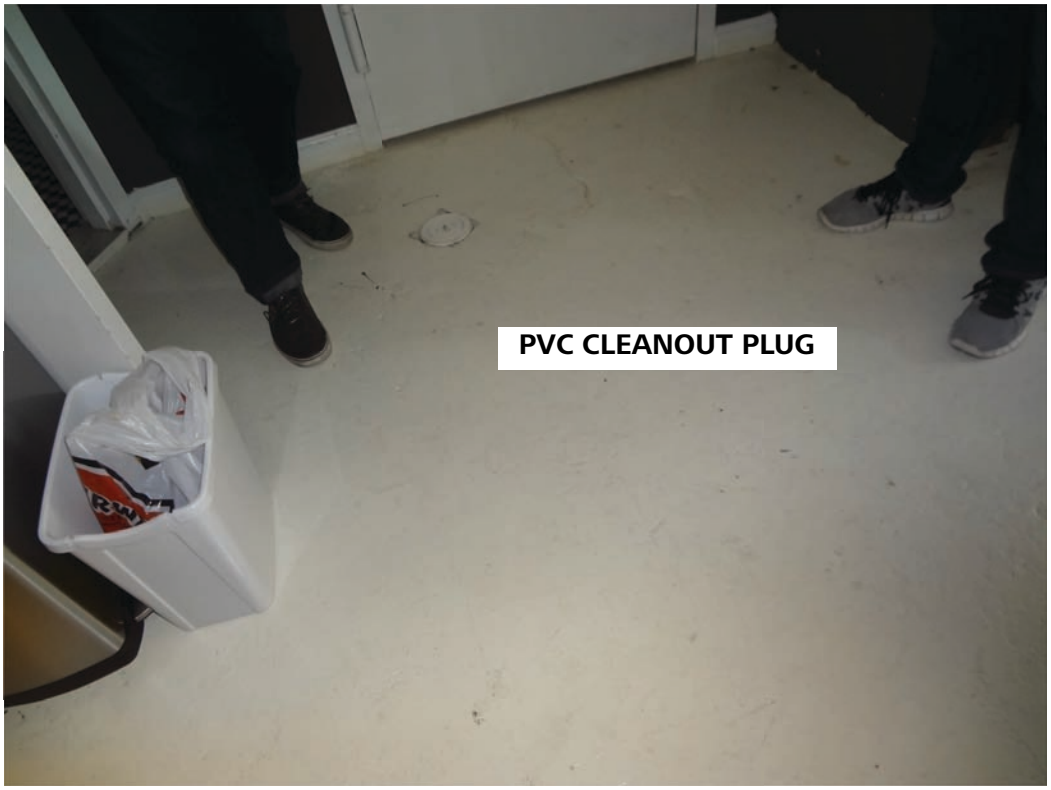
The cleanout plug in apartment #101 is composed of lead and the cleanout in #1P is composed of PVC. As per BC, all clean outs must be composed of brass.

BC §P102.4 Piping System Materials.-

(e) Other piping systems and miscellaneous materials.-

(10) CLEANOUT PLUGS.- Cleanout plugs shall be of brass at least 1/8 in. thick and shall have raised square or hexagonal heads except that where raised heads will cause a tripping hazard, countersunk heads shall be used. Cleanout plugs of nylon may be used in exposed or accessible locations.





There are no backflow prevention devices installed at sewer connections, in violation of BC §P105.9(a)

BC §P105.9 Backwater Valves.-

(a) Fixtures and area drains subject to backflow.- *Where fixtures, floor drains, or area drains are subject to overflow as the result of backwater from the public sewer system, accessible backwater valves shall be installed in the fixture drain pipe from such fixture, in the branch drain to such area drain or group of fixtures, or in the building drain at its point of exit from the building and downstream from the building trap. Masonry access manholes shall be provided when the centerline of any drain line is 18 in. or more below a slab on grade.*

Storm water drainage leaders discharged into a paved lot. As per code BC §P110.2(b), storm water must be discharged into a public street storm sewer.

BC §P110.2 Disposal of Storm Water.-

(b) Disposal of storm water when public sewers are located in front of the property.-*Where any new building or other substantial horizontal enlargement is to be constructed on a lot and the department determines that a public street storm sewer or public street combined sewer is located directly in front of any point of any boundary of such lot and that it would be feasible, pursuant to subdivision (j) of this section, to discharge storm water from such lot into such street storm sewer or street combined sewer, the owner of such lot shall ensure that all storm water falling or coming to rest on all impervious surfaces within such lot will be discharged to such street storm sewer or street combined sewer. Such discharge shall be by means of building storm sewers or building combined sewers, provided that no sewage shall be discharged into a public street storm sewer. If the department determines that such street storm sewer or street combined sewer has partial capacity to receive the storm water discharged from such lot, the remainder of such storm water shall be discharged pursuant to subdivision (c) of this section.*









STORM DRAINS NOT CONNECTED TO STORM OR COMBINED SEWER.

Several units on the ground floor experience periodic sewage backup into their shower stalls and floor drains in violation of codes MRL §305 (1) and MDL §77. Conditions are unsanitary.

MDL § 77. Plumbing and drainage.

1. In every multiple dwelling all liquid or water-borne waste from plumbing fixtures shall be conveyed by a house drain and house sewer to a street sewer or to a combined street storm-water main and sewer, unless no such sewers are available. It shall be unlawful to erect a multiple dwelling which is to be occupied by five families or more unless a connection is made with a street sewer or combined street storm-water main and sewer.

2. For every multiple dwelling where neither kind of sewer is available, provision shall be made for disposing of such waste as may be required by local law.

3. All roofs, terraces, shafts, courts, areas and yards in every multiple dwelling shall be properly graded, drained and connected with a street storm-water main or combined sewer and street storm-water main so that all storm water may pass freely into it, except that where no street storm-water main or combined sewer and street storm-water main exists, the department may permit the storm water from such areas and spaces to drain into a street gutter which leads to a natural channel or water course, or into a dry well. When required by the department, the shafts, courts, areas and yards shall be properly concreted. Every roof shall be so drained that all storm water shall be conveyed therefrom in a manner that will prevent dripping to the ground or the causing of dampness in walls, ceilings, yards, shafts or areas. Nothing in this section shall be deemed to prevent the turfing over of any yard or court space or the planting of shrubs or trees therein when approved by the department.

The following is a letter from tenants to Noam Corp. informing the landlord of sewage backups on March 31st, 2007.

Dear Noam Corp.

This is a letter on the behalf of the tenants from your building in Redhook, Brooklyn at the addresses 14 Verona St. & Delavan St. on the ground floor level apartments 1A though 1H regarding the events of Saturday March 31, 2007.

There was a huge sewage overflow & flooding of the apartments and exterior hallway as well as courtyard space. This event has happened to varying degrees for the last 7 years, at least once a year, if not more. Ray Hall is available by phone, and will call a plumber immediately, as he did this Saturday. This is not enough to deal with the situation, as Noam Corporation being the landlord is responsible for the well being of the building and the tenants with in. One year, Ray was on site with a crew and wet dry vacs cleaning up after the plumber, as well as sanitizing afterward. It seems there is no longer anyone available to do this. It is not the responsibility of the Tenants.

The landlord is responsible for controlling the sewage from polluting the tenants' living areas, and damaging tenants' personal belongings. As stated in below timeline, Tenants in 1H allowed 1F and 1E to use their personal sump pumps to drain sewage & keep it from further

flooding their apartments. This did a lot to help control the flooding from creeping farther back into the apartments. If the sump pumps were applied immediately, it is possible their apartments may not have been flooded, and sewage could be directed out doors into the courtyard.

This year the sewage backup was very bad, affecting most of the entire wing of apartments. This Saturday there was no in-building staff available to help the tenants deal with this situation. This is an unacceptable as it is the responsibility of Noam Corp to deal with the building's sewage flooding situation, as well as the cleanup afterward. As of today, Wednesday, April 4th the hallways still have not been cleaned & sanitized. Tenants in 1H have asked Ray to ask Eduardo to do this.

The Tenants would like to suggest the following:

1. Noam Corp. needs to make some sort of building management available on site (14 Verona St. & Delavan St) during these emergencies, be it weekend or holiday.
2. Noam Corp. Needs to make available to tenants all phone numbers & names of building management, as this is not universally known.
3. Noam Corp. should invest in sump pumps and hoses for the building to contain sewage overflow until arrival of Plumbersfor any apartment that experiences flooding into living areas. (any flooding outside of shower container footprint)
4. Noam Corp. should be responsible for sanitizing all affected building areas after sewage flooding.
5. Noam Corp. should have building management schedule with tenants in apt. 1F regular snaking of pipe in apt 1F every 3 months to try & prevent further sewage emergencies. This suggested (as below) by consultation with Plumbers.

The below written is a time line of what happened, and will explain the need for the 5 points above to be followed.

10:30 AM Apt 1F has sewage starting to back up in shower. A call is made to inform Ray, the super. Ray calls a plumber. The plumber estimates arrival in 2 hours.

11:00 AM it is apparent many apartment units are flooding. More calls are made to Ray. Ray is in NJ so unavailable to come to the building to control the situation.

11:12 AM Eduardo is called. Says he cannot come help as his Saturday shift is already over. Ray is called back, and explains to tenants to ask Noam Corp. why no one is available/ scheduled to help.

Flooding of sewage starts flowing from shower area in to bathrooms, and in to interior apartment entryways and out into the hallway of the building, seeping into & through interior and exterior walls.
Tenants have to break in to locked Janitor closet to get at the 2 wet/dry shop vacuums.
-Apartment 1F has sewage starting to flow into apartment about half the total width (11ft) and then flowing out into the hallway.
-Apartment 1E has sewage starting to flow into apartment across entire width of apartment and approximately 12 ft back into apartment towards their kitchen area, as well as out the door into hallway for 50-70 ft.
- Apt. 1H has sewage starting to flow into apartment back through bathroom, boiler room and into kitchen area. Please note Tenants have an infant.

-Apartments 1A, 1B, 1C, 1D, 1E, 1F, 1G, 1H all experience enough flooding to try & control it with buckets & shop vacs, dumping sewage into interior courtyard.

Apartments 1E and 1F experience the most flooding as they are at the lowest part of the building.
Tenant from apt. 1H offers the following use of his personal property : 2 sump pumps and 2 hoses that are put into apartments 1E and 1F. They are turned on and hoses are vented dumping sewage into interior courtyard for about 1 hour at least non stop, and then every time there is another surge in flow of sewage.
Much human waste is covering interior courtyard where tenants, their pets & children pass through, starting at interior courtyard door & flowing 100 ft into courtyard.

1:45 pm Plumber shows up.

2:15 Plumber & Plumber Mechanic start to snake. Based on past experience, as this seems to happen at least once every year, if not twice for the last 7 years, uses a snake that goes 75 ft into the clean up pipe in apt 1F and frees the blockage and the drains finally start working, and flooding stops.

Asked how to prevent this, the Plumbers suggest finding the "house trap", and cleaning it every 3 months.
A call is made to Ray, and Ray talks to the plumber. It is suggested that the traps are in the back left hand corner in Apt. 1F. Tenants allow access to said area.

Plumber & Plumber Mechanic both inspect, open up pipe caps that are there. There are 4 pipe caps. It is determined that these pipes are not the trap as expected, but are instead clean up pipes that direct the snake back in the direction of the apt units. They would be ineffective to help the situation.
It is NOT determined where the traps are.
Also, it is observed by the plumbers that in the ceiling of Apt 1F that there were previously pipes coming down to this point from the ceiling above.
Plumber says to determine where the traps are that could be CLEANED BY THE BUILDING MANAGEMENT TO PREVENT FURTHER BACKUP, it would be up to the building management or whomever did renovations to know this location.
Plumber recommends if the trap is in an unknown location, then instead regular snaking of the same pipe done Saturday, every 3 MONTHS might be a possible be a way to prevent future emergencies.

6:00 pm Tenants finish cleaning own apartments and briefly hose down courtyard area of human waste & sewage accumulation. Tenants put back both the 2 wet/dry vacs and hoses into Janitor's closet.

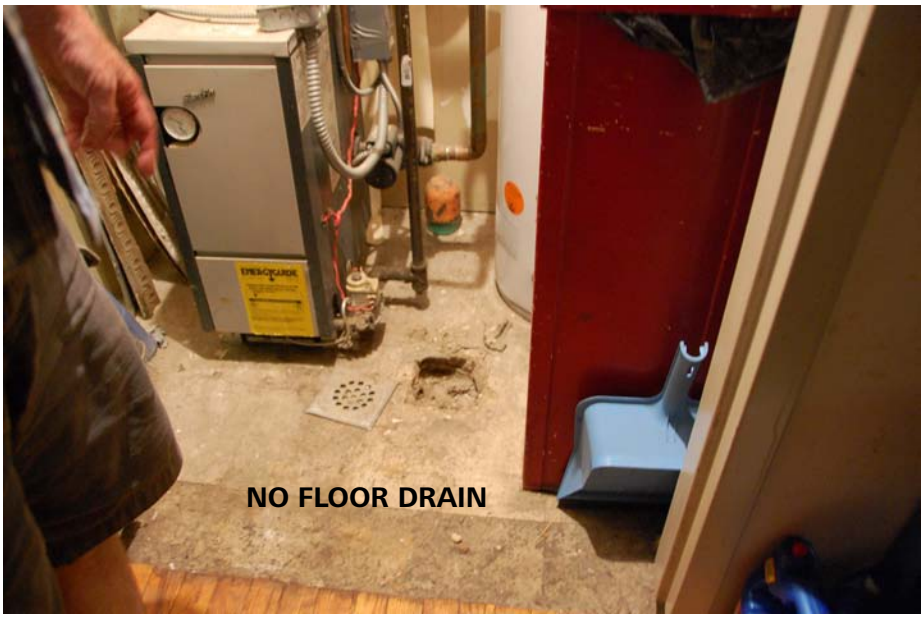


SEWAGE CLEANUP

There is a fake floor drain installed at the boiler room of apartment #1I .

RS 16 P100.0 Definitions.-

DRAIN.—*Any pipe that carries waste water or water-borne wastes in a building drainage system.*



NO FLOOR DRAIN

The walls at apartment #1P allow leakage from the shower into the public hallway. Shower was not installed in accordance with RS P104.9 (b) (c).

P104.9 Showers.-

(b) ***Shower compartments.-***

Shower compartments shall have at least 900 sq. in. of floor area and shall be at least 30 in. in minimum dimension measured as the side of a rectangle, altitude of a triangle or other angular shape, or as diameter of a circle, except when a bathtub is used as the shower compartment. The wall area above built-in tubs having installed shower heads and in shower compartments shall be constructed of smooth, noncorrodible, nonabsorbent, waterproof materials to a height of a least 6 ft. above the floor level. Such walls shall form a watertight joint with each other and with either the tub, receptor, or shower floor.

(c) ***Shower floors or receptors.-***

Floors or receptors under shower compartments shall be laid on a smooth and structurally sound base. Floors under shower compartments, other than those laid directly on the ground surface or where prefabricated receptors have been provided, shall be lined and made watertight by the provisions of suitable shower pans of durable material. Such pans shall turn up on all sides at least 2 in. above the finished shower floor level. Pans shall be securely fastened to the waste outlet at the seepage entrance, making a watertight joint between the pan and the outlet. Floor surfaces shall be constructed of smooth, noncorrodible, nonabsorbent, and waterproof materials.



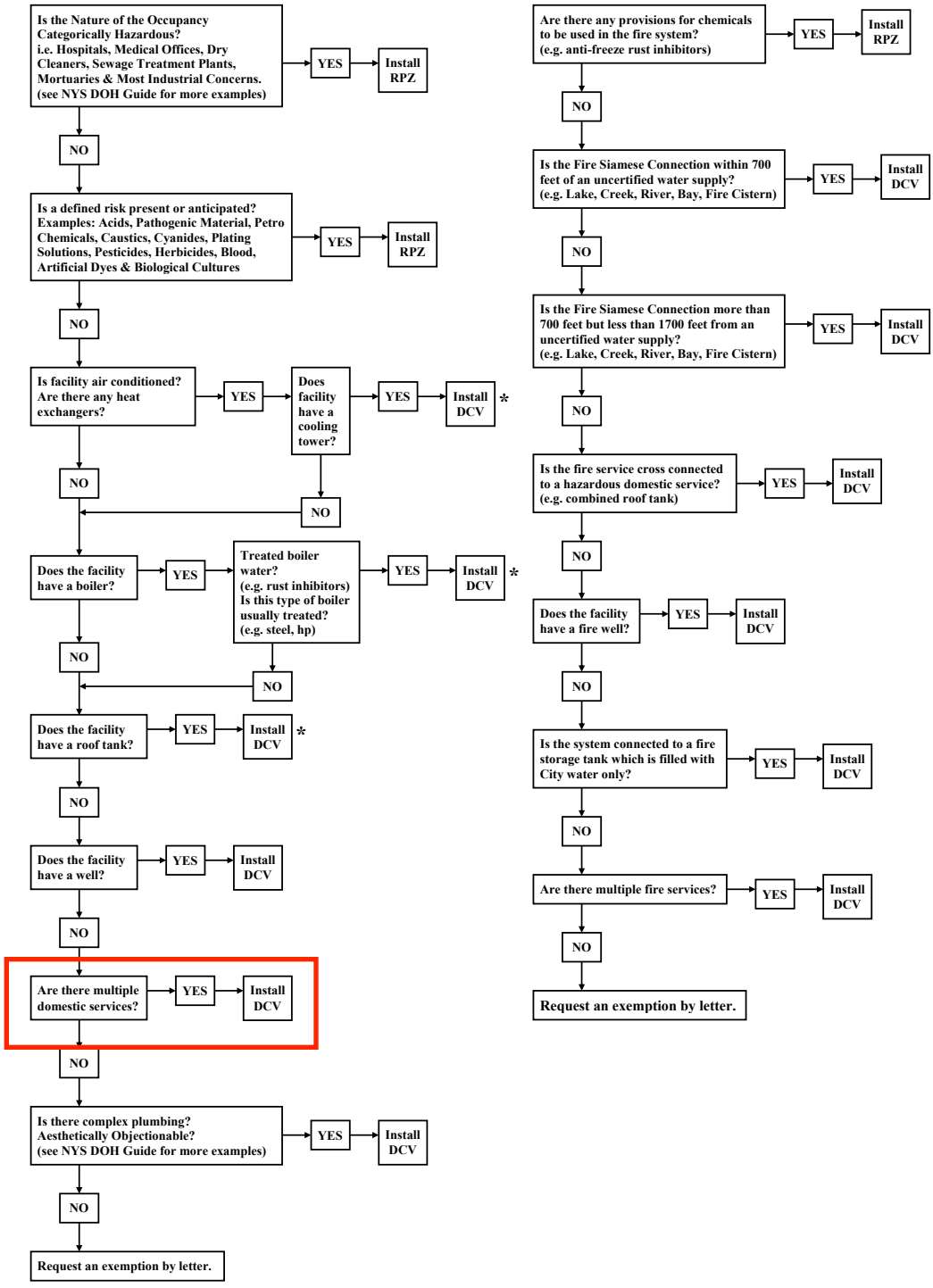
The water services do not contain the required Double Check Valves (DCVs). The tenants can expect a lengthy outage when this code mandated equipment is installed.

The Department of Environmental Protection (DEP) regulates the requirements for the installation of Reduced Pressure Zone devices and Double Check Valves. The baseline criteria used to identify whether or not an RPZ or DCV is required can be found the in the following DEP Cross Connection Risk Assessment. Because the building has small decentralized boilers, an RPZ is not required, but the facility does have multiple services, necessitating the installation of a DCV.

DEP – Bureau of Water and Sewer Operations

Cross Connection Control Risk Assessment

Revised January 2005



2. HEATING - SYSTEM REPLACED, NOT TO CODE.

Gas fired boilers and radiators were installed during the conversion from Manufacturing to Commercial Lofts.

Apartment Unit 1P has to lack of insulation and elements (radiator and 12-1, BC §27-740, and	Tenant letters informing building owner of shared meter condition in 2002.	insufficient heat in winter due poor distribution of heating thermostat) as per BC §Table HMC §27-2029.

-Per applicable codes, temperatures must be maintained at 68˚F (HMC) or 70˚F (BC).

BC § 27-741 Minimum temperature requirements.- *Heating systems shall be capable of producing the required minimum space temperatures as set forth in table 12-1. Where the occupancy of a space does not conform exactly with any of the spaces listed, the temperature shall be determined by the requirements of the listed space to which it most nearly conforms.*

BC §TABLE 12-1 MINIMUM SPACE TEMPERATURE REQUIREMENTS

Rooms or Spaces……Minimum Temperature (degree F)
Habitable rooms in all buildings..... 70
Building equipment and machinery rooms..... 50
Patients' rooms, bathrooms and toilet rooms, stairs and corridors in hospitals and nursing homes.....75
Bathrooms and toilet rooms, except patients' bathrooms and toilet rooms in hospitals and nursing homes. 70
Offices, waiting rooms, art galleries, museums, libraries, meeting rooms, churches, classrooms, auditoriums, lecture halls, night clubs, restaurants, theatres, locker rooms, dressing rooms, and spaces where persons are engaged in sedentary activities..... 70
Laboratories, light machine work, product inspections, loft buildings, shops, stores, display rooms, show rooms, sales rooms, and spaces where persons are engaged in moderate physical activities..... 70

Several individual dwelling units share their gas meter with the public corridor in violations of code PSL §52

-It is the owner's responsibility to remedy shared meter conditions throughout the Building

PSL § 52. Gas, electric and steam service to tenants provided through shared meters.

1. Definitions: As used in this section, the following terms shall have the following meanings:

(a) "Owner" means and includes the owner or owners of the freehold of the premises or lesser estate therein, mortgagee or vendee in possession, assignee of rents, receiver, executor, trustee, lessee, agent, or any other person, firm or corporation, directly or indirectly in control of a dwelling.

(b) "Shared meter" means any utility meter that measures gas, electric or steam service provided to a tenant's dwelling and also measures such service to areas outside that dwelling and such tenant pays charges for the service to areas outside the dwelling measured through such meter.

(c) "Dwelling" means any building or structure or portion thereof which is occupied in whole or in part as the home, residence or sleeping place of one or more human beings, including any equipment located outside such building or structure or portion thereof which is under the exclusive use and control of the occupant, and is

either rented, leased, let or hired out, to be occupied, or is occupied as the residence or home of one or more human beings.

(d) "Utility" means any gas, electric and steam corporation and/or municipality providing service to residential customers.

(e) "Shared meter customer" means any tenant who rents a dwelling from an owner that is served by a shared utility meter for which the tenant, rather than the owner, is the utility's customer of record.

(f) "Extraordinary cost" means the cost, as determined by a qualified professional, of installing equipment necessary to eliminate a shared meter in a dwelling or portion thereof which is in excess of the amount of rent for four months rental of such dwelling. The commission shall adopt additional rules for determining extraordinary cost based upon whether the amount of service measured by the shared meter that is utilized outside the shared meter customer's dwelling is sufficient to warrant the cost of such installation.

(g) "Legal impediment" means a restriction which prevents separate metering, rewiring, or repiping due to zoning ordinances which limit the number or type or location of meters in a building or due to the historical significance of the structure or such other legal restrictions as determined by the commission in its rules.

(h) "Shared area charges" means that portion of charges billed to the shared meter customer which remains after excluding the estimated charges for service used by the shared meter customer and where applicable, a third party, for the period during which the owner maintained a shared meter condition in violation of this section or six years whichever is shorter.

(i) "Third party involvement" means that a third party whose utility service was to be measured through another meter had caused or benefitted from a shared meter condition.

2. Owner's responsibility for service measured through a shared meter.

(a) An owner shall eliminate any shared meter condition or, in the alternative, establish an account in the owner's name for all the shared area charges for service measured through a shared meter effective six years prior to the discovery of or determination that a shared meter condition exists, or the first day of the tenancy, or the date the shared meter condition began, or the sixtieth day after the owner knew or should have known that third party involvement exists, or the date the owner assumed title to the dwelling, whichever is most recent in time and for all future service measured by the shared meter. The utility shall, upon an owner's application, open such an account and bill the owner for all applicable shared area charges and all future service measured by the shared meter through such account.

(b) (i) In the event that a legal impediment or extraordinary cost prevents elimination of a shared meter condition or in the event that the service measured through the shared meter is minimal, under commission rules adopted, pursuant to subdivision eight of this section, the owner, as an alternative to eliminating the shared meter condition, may enter into a mutually acceptable written agreement with the shared meter customer and where applicable, a third party, for apportioning the charges for service measured through the shared meter; provided, however, that the shared meter customer shall pay only for the estimated amount of service provided to the shared meter customer's dwelling, or

(ii) In the event that there is an existing written agreement between the owner and the shared meter customer, and where applicable, a third party, for the apportionment of charges for service measured by a shared meter prior to October twenty-fourth, nineteen hundred ninety-one, such agreement will remain in effect, as an alternative to eliminating the shared meter condition or establishing an account in the owner's name, until any lease or rental agreement for the rental of the dwelling expires, provided, however, that the shared meter customer or third party may request the commission or its designee to review the existing written agreement if such shared meter customer or third party believes the terms are unfair or unreasonable. If the commission or its

designee finds that the terms of the existing written agreement are unfair or unreasonable, the commission or its designee shall void such agreement and assist the interested parties in negotiating and executing a mutually acceptable written agreement.

(c) (i) In the event that a mutually acceptable written agreement is negotiated and executed, the owner shall provide a copy of the agreement to the utility, the shared meter customer, and where applicable, a third party.

(ii) If the interested parties are unable to negotiate a mutually acceptable written agreement, the commission or its designee, upon a complaint by a customer or owner, shall order a remedy, consistent with the relief provided in this section, as it deems proper. The commission or its designee shall have the authority to apportion estimated charges for service measured by a shared meter among the owner, shared meter customer and any third party.

AHR COPY

Harbor Tech, LLC
C/o Noam Corporation.
5209 13th Avenue
Brooklyn, NY 11219

Re: gas bills

31 July 2002

Dear Harbor Tech / Noam,

I called a few months back to discuss the fact that the hallway heater near my door is connected to my boiler. Louis (I'm sorry, but I don't know his last name) came to my apartment to look at my boiler and we talked about my heating bills for the past two winters. He stated that a fair reimbursement would be 50% of the winter-time gas bills, based on the fact that my bills are approximately twice the average gas bill of an apartment without a hallway heater connected.

I apologize for taking so long to gather this information, but I am enclosing my gas bills from the last two winters with totals indicated. As you can see, my bills for the first winter were extremely high. This past winter was warmer, gas prices were lower, and I installed (at my own cost) a digital/programmable thermostat, which all seemed to help lower my gas bills this year.

$1,237.17 + $505.24 = $1742.41

$1742.41 x .50 (50%) = $871.20.

Please reimburse me for the amount of $871.20.

I also would like to work out an agreement for future heating bills to avoid this again next year.

Thank you very much,

Allison Reeves

Harbor Tech, LLC
C/o Noam Corporation.
5209 13th Avenue
Brooklyn, NY 11219

Re: gas bills

19 November 2002

Dear Harbor Tech / Noam,

I sent you a letter dated July 30, 2002, concerning my gas bills, and I have had several conversations with Louis regarding this. However, I have not heard from you since then and I think it's far overdue for you to reimburse me for the hallway heater that is connected to my boiler. Your delinquency in paying me is not acceptable business practice. To make it easy for you, I will deduct the amount of $871.20 from December's rent and 50% of all current and future gas bills.

Thank you very much,

Allison Reeves

12/01/2002 Monthly Rent 1200.00
BALANCE DUE $ 1200.00
GAS - 871.20
328.80

RDHK 5A IR 39
Allison Reeves
14 Verona Street
Brooklyn, New York 11231

3. GAS SUPPLY - SYSTEM REPLACED, NOT TO CODE.

The gas meter rooms are not properly ventilated per BC §P115.6 (a).

(a) When located inside the building, meters shall be located as near as practicable to the point of entrance of the service and, where possible, the meters shall be located in the cellar or basement unless otherwise permitted by the commissioner. The meter location shall be clean, dry, and free of refuse, steam or chemical fumes. Meters shall be adequately protected against extreme cold or heat and shall be readily accessible for reading and inspection. The area in which the meter is located shall be properly ventilated. Notwithstanding the foregoing, outside meter installation shall be permitted in areas where the utility company certifies that dry gas is being distributed.

The gas meter room is not appropriately labeled in per Building Code requirements section BC §P115.6 (c). It is also being used for storage.

BC §P115.6 Gas Meter Location.-

(c) Gas meter rooms, when provided, shall at all times be kept clear of all rubbish; and shall not be used in any way for storage purposes, including material or equipment of any kind. A legible sign reading "Gas meter room-No storage permitted" shall be permanently and conspicuously posted on the exterior of the meter room door, except that the sign may be posted on the interior of the meter room door in buildings classified in occupancy group J-3. The lettering of such signs shall be of bold type at least one inch in height and shall be properly spaced to provide good legibility. The lettering and background shall be of contrasting colors. Where gas meters and related equipment are not located in a separate room but are located in an open floor area, no combustible material shall be stored or kept within five feet of such equipment; nor shall the gas meter be within three feet of any heating boiler or sources of ignition and, except for buildings in occupancy group J-3, there shall be a physical barrier required if the room is also used for storage purposes or the like.



GAS METER ROOM

4. ELECTRICAL WIRING - SYSTEM REPLACED, NOT TO CODE.

There are no roof receptacles for servicing the roof mechanical equipment, in violation of code RS §NEC 210.63

NEC §210.63 Heating, Air-Conditioning, and Refrigeration Equipment Outlet

A 125-volt, single-phase, 15- or 20-ampere-rated receptacle outlet shall be installed at an accessible location for the servicing of heating, air-conditioning, and refrigeration equipment. The receptacle shall be located on the same level and within 7.5 m (25 ft) of the heating, air-conditioning, and refrigeration equipment. The receptacle outlet shall not be connected to the load side of the equipment disconnecting means.



NO OUTLETS PROVIDED FOR SERVICING EQUIPMENT

As per NEC §210.52, convenience receptacles are required 12' on center in apartments. No apartment in the building meets this requirement.

NEC §210.52 Dwelling Unit Receptacle Outlets.-

This section provides requirements for 125-volt, 15- and 20-ampere receptacle outlets. Receptacle outlets required by this section shall be in addition to any receptacle that is part of a luminaire (lighting fixture) or appliance, located within cabinets or cupboards,

Not only does 210.25 prohibit branch circuits from feeding more than one dwelling unit, it also prohibits the sharing of systems, equipment, or common lighting if that equipment is fed from any of the dwelling units. The systems, equipment, or lighting for public or common areas is required to be supplied from a separate ``house load'' panelboard. This requirement permits access to the branch-circuit disconnecting means without the need to enter the space of any tenants. The requirement also prevents a tenant from turning off important circuits that may affect other tenants.

(A) General Provisions.- *In every kitchen, family room, dining room, living room, parlor, library, den, sunroom, bedroom, recreation room, or similar room or area of dwelling units, receptacle outlets shall be installed in accordance with the general provisions specified in 210.52(A)(1) through (A)(3).*

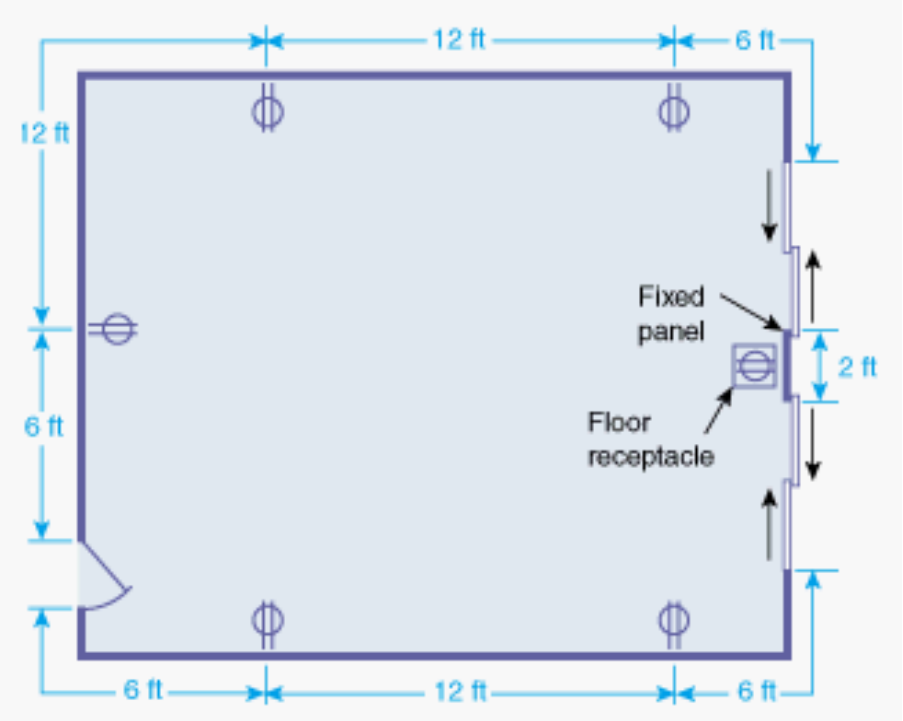
(1) ***Spacing.-*** *Receptacles shall be installed so that no point measured horizontally along the floor line in any wall space is more than 1.8 m (6 ft) from a receptacle outlet.*

(2) Wall Space.- *As used in this section, a wall space shall include the following:*

(1) Any space 600 mm (2 ft) or more in width (including space measured around corners) and unbroken along the floor line by doorways, fireplaces, and similar openings

(2) The space occupied by fixed panels in exterior walls, excluding sliding panels

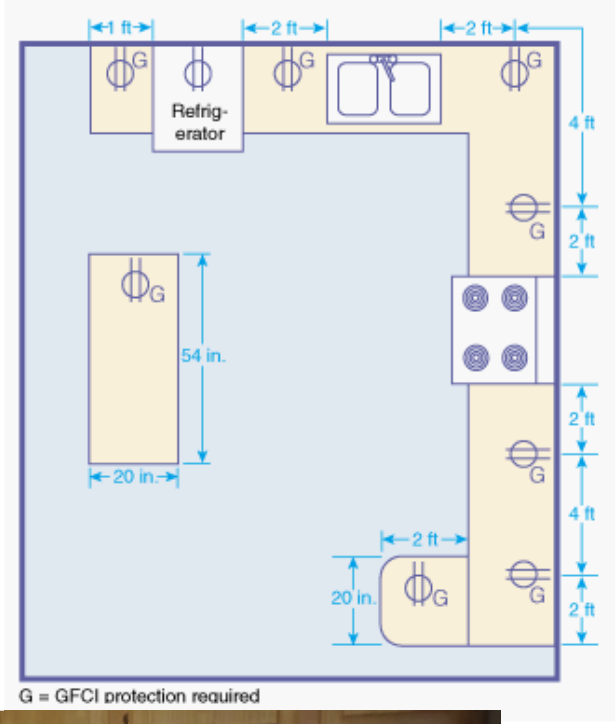
(3) The space afforded by fixed room dividers such as freestanding bar-type counters or railings



Kitchens do not have the required number of grounded 'GFCI' receptacles in violation of RS NEC §210.52.

(3) ***Kitchen Receptacle Requirements*** *Receptacles installed in a kitchen to serve countertop surfaces shall be supplied by not fewer than two small-appliance branch circuits, either or both of which shall also be permitted to supply receptacle outlets in the same kitchen and in other rooms specified in 210.52(B)(1). Additional small-appliance branch circuits shall be permitted to supply receptacle outlets in the kitchen and other rooms specified in 210.52(B)(1). No small-appliance branch circuit shall serve more than one kitchen.*

(C) ***Countertops*** *In kitchens and dining rooms of dwelling units, receptacle outlets for counter spaces shall be installed in accordance with 210.52(C)(1) through (C)(5).*





(1) Wall Counter Spaces *A receptacle outlet shall be installed at each wall counter space that is 300 mm (12 in.) or wider. Receptacle outlets shall be installed so that no point along the wall line is more than 600 mm (24 in.) measured horizontally from a receptacle outlet in that space.*

Exception: Receptacle outlets shall not be required on a wall directly behind a range or sink in the installation described in Figure 210.52.

(2) Island Counter Spaces *At least one receptacle shall be installed at each island counter space with a long dimension of 600 mm (24 in.) or greater and a short dimension of 300 mm (12 in.) or greater. Where a rangetop or sink is installed in an island counter and the width of the counter behind the rangetop or sink is less than 300 mm (12 in.), the rangetop or sink is considered to divide the island into two separate countertop spaces as defined in 210.52(C)(4).*

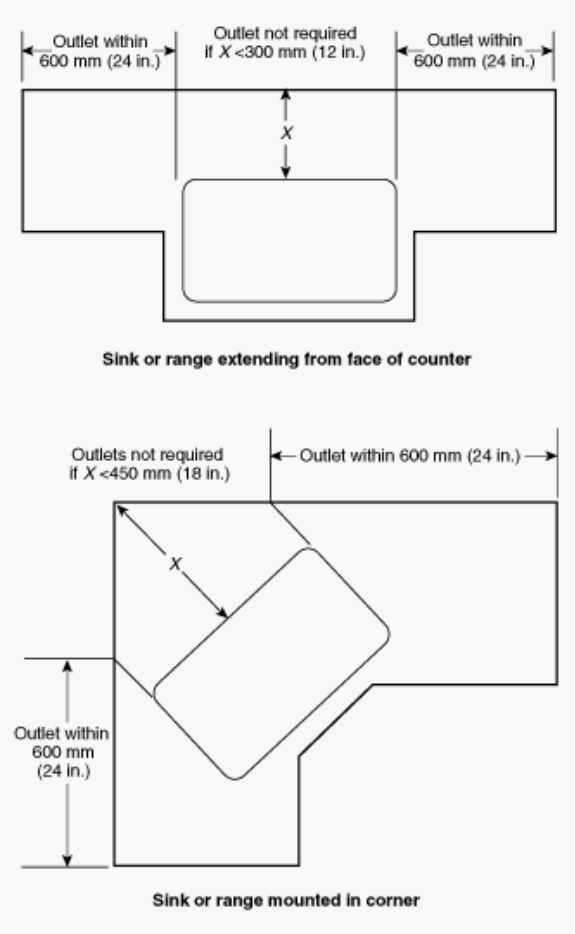


Figure 210.52 Determination of Area Behind Sink or Range

5. INTERCOMS - SYSTEM REPLACED TO CODE.

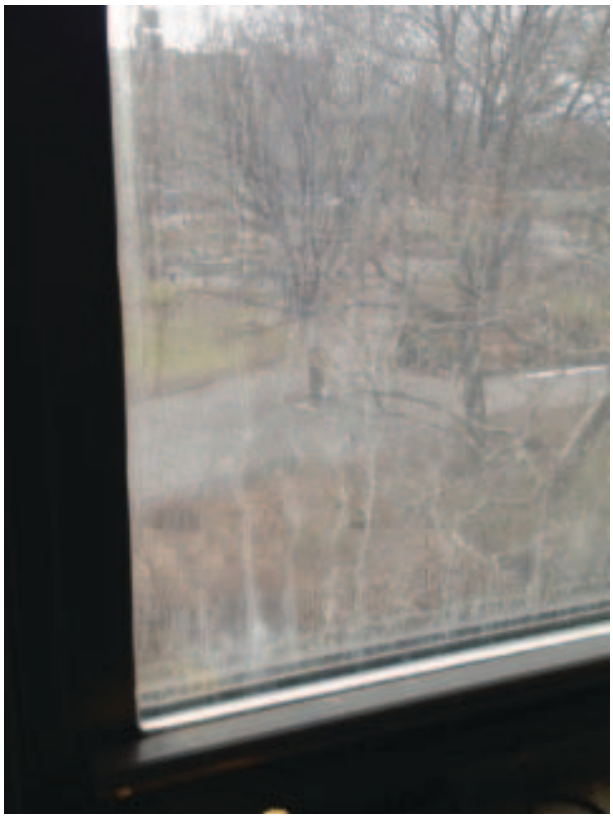
Provided as part of conversion to residential use and in general working order.

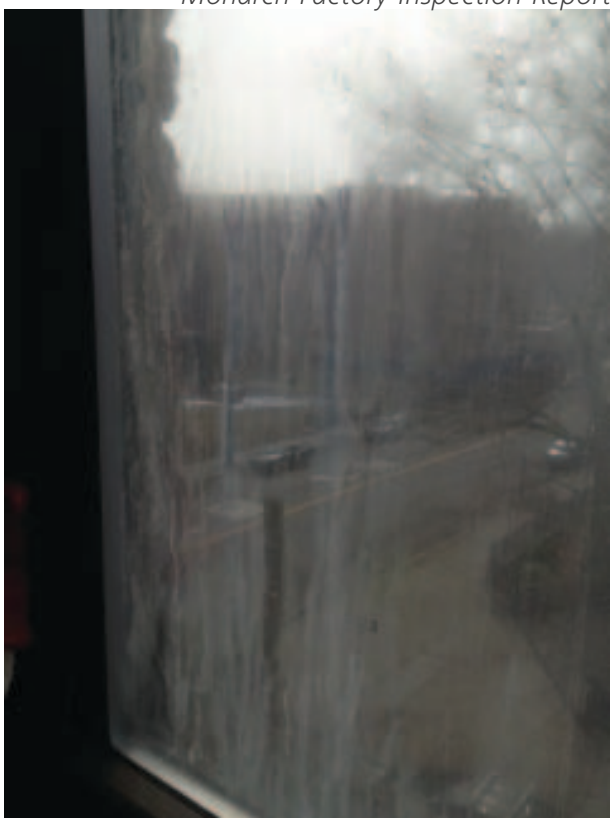
6. WINDOWS - SYSTEM REPLACED, NOT TO CODE.

New aluminum, double paned, casement and double hung windows were installed as part of conversion to commercial, then residential use.

A number of windows inspected are currently damaged with significant condensation inside the panes. This is a typical sign of high humidity inside a habitable room.







Windows were not provided to meet the requirements of Fresh Air per BC §27-750 (5% of habitable floor area), MDL §277 section 6, HMC §27-2059. Most units inspected did not meet this requirement.

BC §27-750 Area of ventilating openings.- *Ventilating openings in all habitable rooms or spaces shall have a free openable area of at least five percent of the floor area of the room or space ventilated and where there is an enclosed or partially enclosed balcony or space above a setback complying with section 27-733 of article three of this subchapter the ventilating openings shall have a free openable area of at least five percent of the combined floor area of such room and portion of the balcony or space directly adjoining and in front of such room. Each required ventilating opening shall have a minimum openable area of six square feet. Where fresh air is furnished in any habitable room or space by mechanical means supplying a minimum of forty cfm the free openable area of the openings may be reduced to one-half of the above requirements but not less than five and one-half square feet in aggregate. In all occupiable rooms or spaces, the free openable area shall be used to calculate the index for ventilation (section 27-753 of article seven of this subchapter), which shall determine the minimum requirements for supplementary mechanical ventilation.*

HMC § 27-2059 Lighting and ventilation of living rooms in converted dwellings.

a. Required windows. Except as provided in subdivision c, every living room in a converted dwelling shall have at least one window opening on:

(1) A street,

(2) A yard or outer court which complies with the provisions of section one hundred seventy-two of the multiple dwelling law, or

(3) An inner court or shaft with minimum dimensions of three feet, nine inches in width and eight feet in length.

For a room located on the top story, a skylight of the dimensions required in subdivision b may be substituted for a window.

b. Size of windows. (1) The total area of all windows in the room shall be at least one-tenth the floor area of such room.

(2) Every required window or skylight shall be at least twelve square feet, except that if the total area of windows in the room is one-eighth of the floor area this requirement shall not apply.

(3) At least one-half of every required window shall open. One-half of the skylight shall have ventilating openings, unless (a) the skylight is equipped with a minimum of one hundred and forty-four square inches of ventilation, and (b) there is at least one window in the room, and (c) the combined glazed area of the skylight and window is at least one-eighth of the floor area.

(4) The top of every required window shall be at least seven feet above the floor, except that on the top story it shall be a minimum of six feet above the floor.

Many windows appear to be improperly flashed and sealed thus do no comply with the 2002 §ECCCNYS code, Section III regarding air infiltration and moisture control requirements.

2002 ECCC Of NYS, Section III

Vapor Retarders

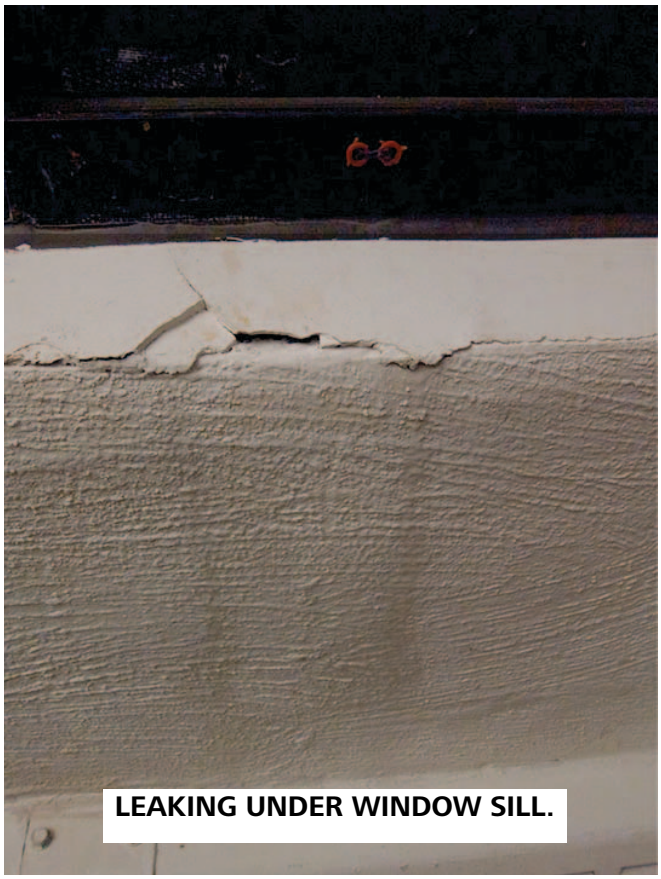
Vapor retarders must be installed in all non-vented framed areas in ceilings, walls, and floors. Non-vented areas are framed cavities without vents or other openings to allow for free air movement. The vapor retarder must have a perm rating of 1.0 or less and must be installed on the warm-in-winter side of the insulation (between the insulation and conditioned space). Vapor retarders are not required where moisture or its freezing will not damage materials or where other approved measures are taken to avoid condensation.



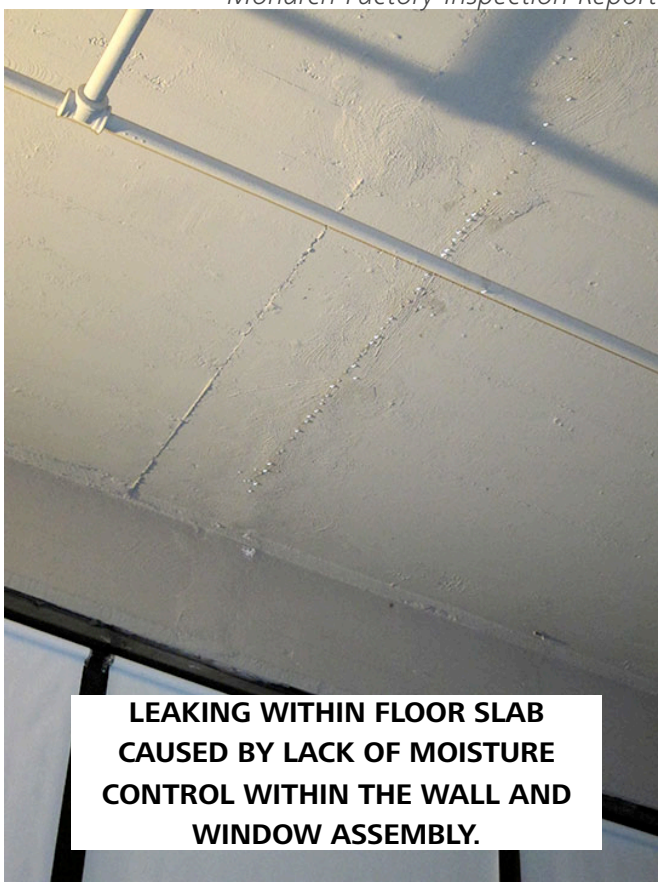
LEAKING UNDER WINDOW SILL.



NO VAPOR RETARDER IS INSTALLED AS VISIBLE IN THIS CONSTRUCTION REPAIR PHOTO.



LEAKING UNDER WINDOW SILL.



LEAKING WITHIN FLOOR SLAB CAUSED BY LACK OF MOISTURE CONTROL WITHIN THE WALL AND WINDOW ASSEMBLY.



FREQUENT AND SEVERE LEAKING HAVE LED TO MOLD SPREAD

Several units facing north onto Delevan Street, exhibit severe leaking from the concrete slab above due to water infiltration through the façade leading to visible mold spread. See DOH guidelines on mold remediation.

DOH - Preventing and Cleaning Mold Growth
Fact Sheet for Building Owners and Managers

Mold (mildew) is a fungus that can grow inside building on wet or damp surfaces. Mold can cause allergic reactions, trigger asthma attacks, or cause other health problems in some people.
Mold needs water or moisture to grow. Stop indoor mold growth by fixing leaks, drying damp or wet areas and controlling humidity. Before a clean-up, refer to the complete "Mold Guidelines" at nyc.gov/health.

PREVENT MOLD GROWTH

Fix Water Problems Immediately

- Correct water leaks.
- Dry any and all water-damaged items or areas.

Control Moisture Sources

- In bathrooms without windows, check that bathroom fans or exhaust vents are working.
- In bathrooms with windows, check that the window can be opened.
- Use a dehumidifier to lower humidity levels in basements.

CHECK THE SIZE OF THE AREA WITH MOLD GROWTH AND WATER DAMAGE

- Look for hidden mold and water damage
- If the amount of mold observed covers a large area (more than 100 square feet), is in the HVAC system, or is difficult to get to, you may need professional help.
- If there is less than 100 square feet of mold growth, trained building staff should be able to do the cleanup job.

FOLLOW THE PROPER STEPS TO CLEAN MOLD GROWTH

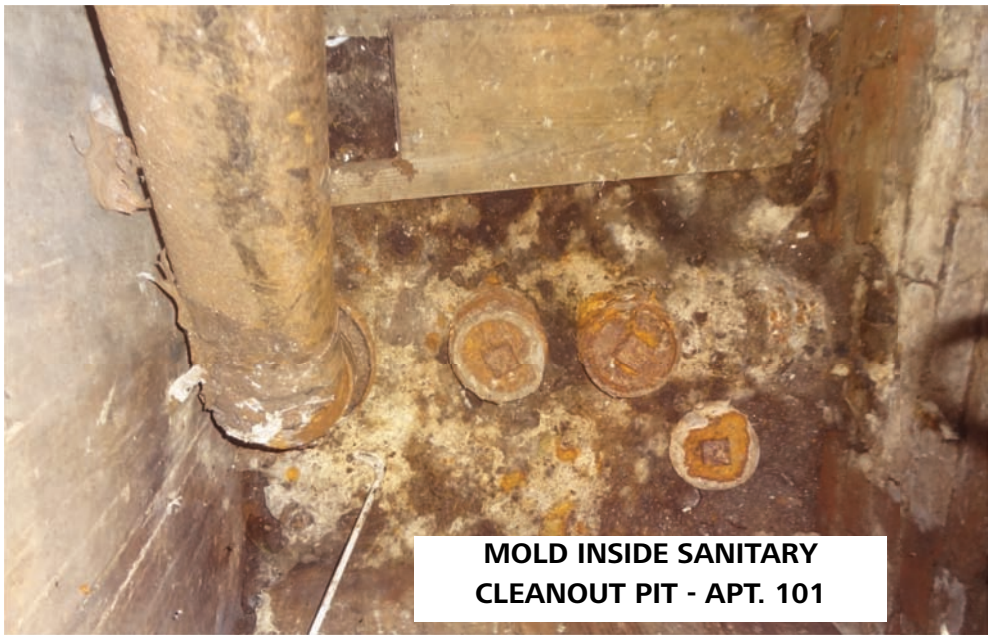
- Tell people living or working in the building about the plan to clean the mold growth.
- Tenants and others should leave the work area before cleaning begins.
- Cover or remove difficult-to-clean surfaces or items (e.g. carpeting, electronics) from the work area before cleaning begins.
- Use safety goggles, gloves, and a disposable respirator when removing mold growth.
- Clean mold growth with soap or a detergent, and water.
- Remove and throw away porous materials (e.g. ceiling tiles, insulation) with mold growth on them.
- Dispose of any plastic sheeting, moldy materials, and used sponges or rags in sealed heavy duty plastic bags.
- Always fix water problems immediately. If the mold returns quickly or spreads, you may have an ongoing water problem.

If more than 10 square feet of mold growth is present also:

- Cover the floor in the work area with plastic sheeting.
- Cover entry and exit pathways with plastic sheeting.
- Seal any ventilation ducts with plastic sheeting.
- Mop and/or HEPA-vacuum the work area and pathways.

CLEAN MOLD GROWTH WITH PROPER SUPPLIES

- *Soap or detergent*
- *Disposable rags/sponges and scrub brush*
- *Buckets*
- *Heavy-duty plastic garbage bags*
- *Protective gear (e.g. goggles, rubber gloves, N95 respirator)*



MOLD INSIDE SANITARY CLEANOUT PIT - APT. 101

Per BC §27-750 some required ventilation has been compromised by exterior obstructions, see photos.

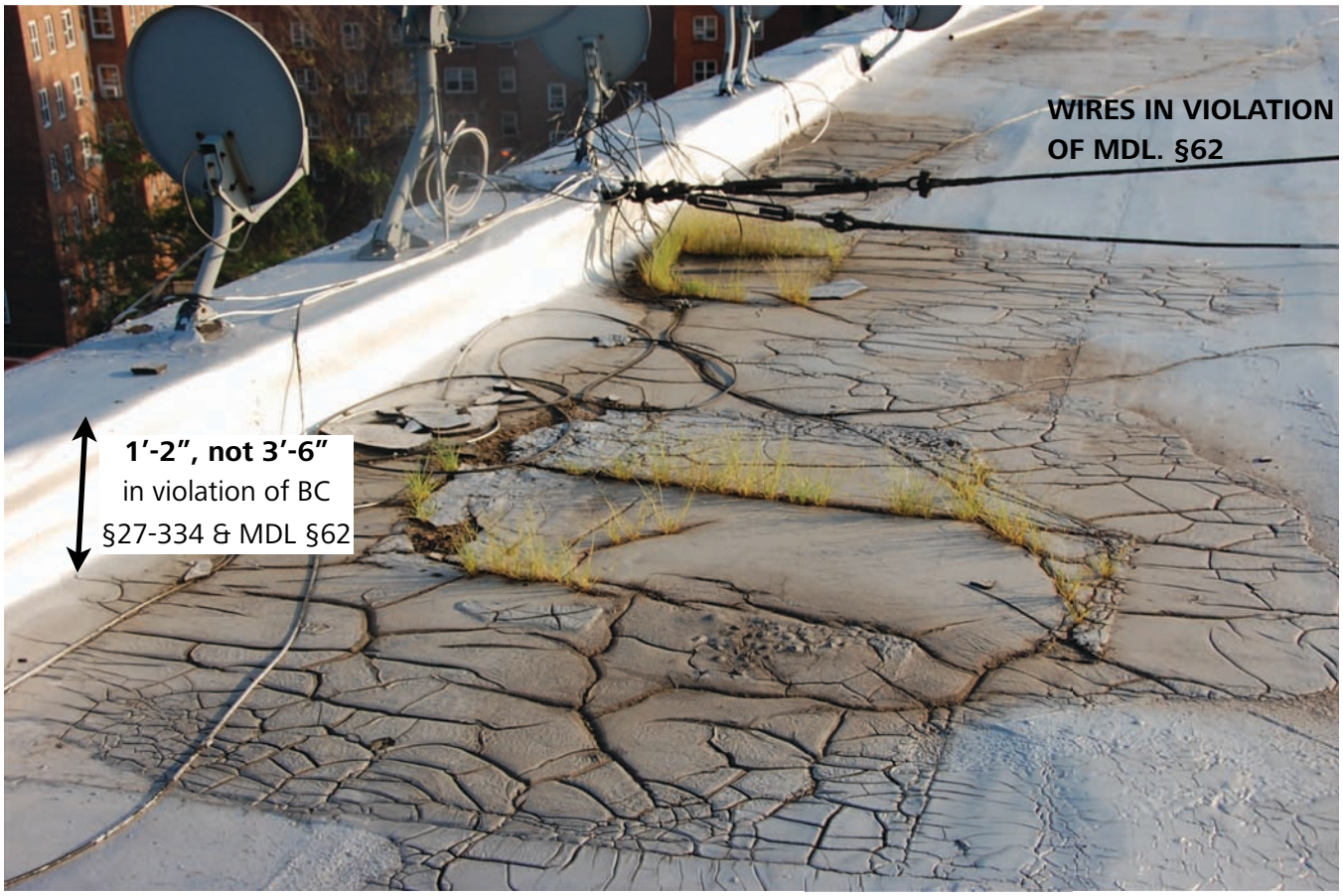


VENTILATION OBSTRUCTED

7. ROOF - SYSTEM NOT REPLACED AND NOT TO CODE.

An asphalt built up roof with a reflective coating was installed as part of the conversion to residential.

Due to improper drainage and maintenance, areas of the roofing have been compromised with cracking and peeling.



ROOF AT WING A

The existing roof parapets are between 1'-0" and 2'-6" in height and were not raised as shown in approved plans for DOB Job # 300959791 to the code mandated 3'-6" in height in violation of BC §27-334 and MDL §62.

Buildings with flat roofs that are higher than 22'-0" from grade and do not meet the prescribed parapet or railing code height are a threat to life safety.

BC §[C26-503.4] 27-334 Protective guards. - *Buildings that are more than twenty-two feet in height and have roofs that are flatter than twenty degrees to the horizontal shall be provided with a parapet not less than three feet six inches high, or be provided with a three foot six inch high railing or fence, or a combination of a parapet and railing or fence which together are not less than three feet six inches high. Railings or fences may be located*

inward from the face of the exterior wall a distance not exceeding six feet, and shall be of a type that will prevent children from crawling through or over them. Where roofs are used for recreational purposes, wire fencing at least ten feet high shall be constructed. Where ball games are played on roofs the wire fencing shall be extended to provide an overhead closure. Except on buildings of classes II-D or II-E construction, railings or fences shall be of noncombustible material. Railings shall be constructed as required in section 27- 558 of article three of subchapter nine of this chapter.

MDL § 62. Parapets, guard railings and wires.

1. Every open area of a roof, terrace, areaway, outside stair, stair landing, retaining wall or porch and every stair window of a multiple dwelling erected after April eighteenth, nineteen hundred twenty-nine, shall be protected in a manner approved by the department by a parapet wall or a guard railing three feet six inches or more in height above the level of such area, or, in the case of a stair window, above the level of the floor adjacent thereto, unless the department shall deem that such protection is not necessary for safety. In any multiple dwelling where a bulkhead door or scuttle cover opens within four feet of the edge of the roof, that part of the roof which is immediately adjacent to such door or cover shall be adequately protected. Such protection shall consist of guard rails or parapet walls extending at least three feet six inches above the level of the roof, and shall be arranged and placed in a manner approved by the department, but shall not be required for such bulkhead door or scuttle cover when the bulkhead or scuttle on such dwelling is immediately adjacent to, and also on the same level as or on a lower level than, the roof of a contiguous building. This subdivision shall not apply to the open area of a roof of a garden-type maisonette dwelling project.

2. All radio, antennae or other wires over any roof shall, unless otherwise permitted by the department, be kept ten feet or more above such roof, and no radio, television antennae or other wires shall be attached to any fire escape or to any soil or vent line extending above the roof.



PARAPET NOT RAISED TO CODE MANDATED 3'-6", CAP NEVER REPLACED

Roof is in violation of ZR §15-12, which states that 30% - 50% of the roof area shall be provided for recreational use. Roof access not provided, see photo. Roof is inadequate for recreational use due to parapet heights.

ZR §15-12. Open Space Equivalent.- *At least 30 percent of the gross roof area of a #building# containing 15 #dwelling units# shall be provided for recreational use. For each additional #dwelling unit#, 100 square feet of additional roof area shall be provided for recreational use, up to a maximum of 50 percent of the gross roof area. This recreational area shall be accessible to all the occupants of said #building# and their guests. No fees shall be charged to the occupants or their guests. The provisions of this Section may be modified pursuant to Section 15-30.*

ZR §15-30. MINOR MODIFICATIONS.-

On application, the Chairperson of the City Planning Commission may grant minor modifications to the following provisions of this Chapter:

(b)The requirements of Section 15-12 and Section 15-24 relating to the #open space# equivalent may be modified provided that the Chairperson of the Commission has administratively certified to the Department of Buildings that the roof either is unsuited for open space use or cannot be made suitable for open space use at reasonable cost.



As per ZR §15-30, the Zoning Resolution Commission has never administratively certified that the roof of the Building is unsuited for open space use or cannot be made suitable at a reasonable cost.

8. ELEVATORS - SYSTEM NOT REPLACED, NOT TO CODE.

Elevators were not upgraded as part of the conversion to residential. Only two of three freight elevators are "Active". As of August 15, 2013, the Building has seven Open Elevator violations with the DOB.

The two active freight elevators are capable of carrying passengers. The active elevators do not have appropriate signage and are not handicap accessible as indicated in approved plan A-1 per DOB Job #300959791. Accessibility requirements are outlined in the 1991 ADA §4.10.



9. INCINERATORS OR WASTE COMPACTORS - NOT APPLICABLE, NONE PROVIDED

10. FIRE ESCAPES - ONE FIRE ESCAPE INSTALLED, TO CODE.

One new fire escape provided as part of the conversion to residential use. It is to serve as a means of egress for units in Wing C.

11. INTERIOR STAIRWAYS - SYSTEM NOT REPLACED, NOT TO CODE.

None of the interior stairways were rebuilt as new as part of the conversion to residential and contain numerous code violations.

Door swing into egress stairwell reduces the required width of the stair landing and violates BC §27-375 (g).

This violation is a hazard in the event of an emergency evacuation.

BC §[C26-604.8] 27-375 Interior stairs. *- Interior stairs shall comply with the following requirements:*
(g) Stair doors. - Doors providing access to stairs shall comply with the requirements of subdivision (a) of section 27-342 of article five of subchapter five of this chapter and subdivision (e) of section 27-371 of this article. The swing of stair doors shall not block stairs or stair landings, nor shall any door at any point of its swing reduce the effective width of the landing or stair to less than seventy-five percent of the required width of the landing or stair, or to less than the width of the door opening on them. The width of doors from a stair shall not be less than the number of units of exit width required for the capacity of the stair, but in no case shall the door width be less than required by subdivision (e) of section 27-371 of this article.



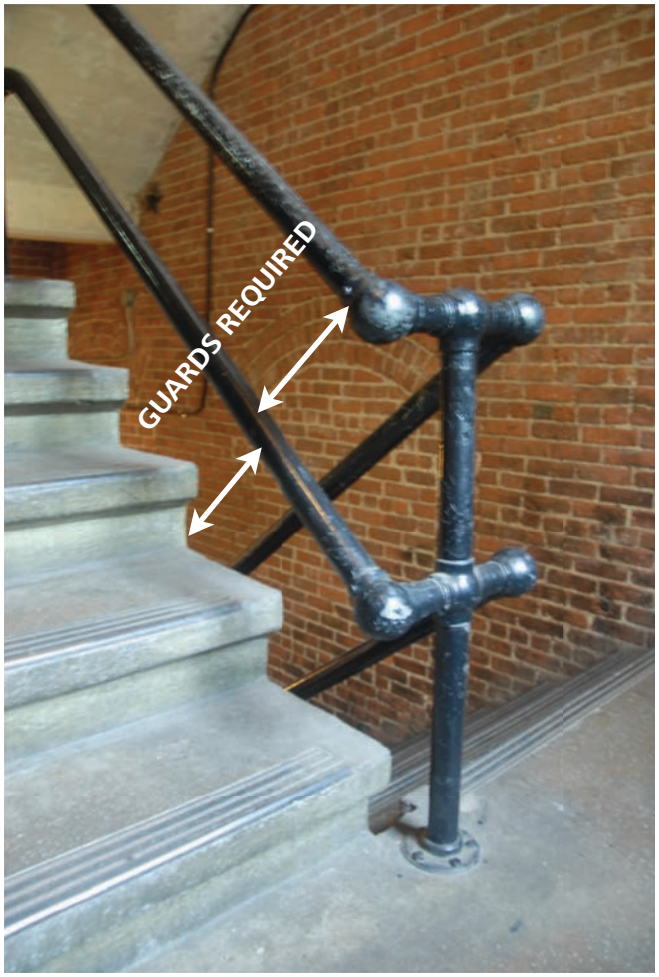
DOOR SWINGS INTO REQUIRED LANDING AND REDUCES IT BY APPROX. 90% (versus 25% maximum permitted)

Egress stairs with a width of 54" require two handrails. As per BC §27-375 (f) an egress stair width of 54" requires two handrails with a wall or protective guards. All egress stairs only have one handrail with no protective guard.

BC §[C26-604.8] 27-375 Interior stairs. - *Interior stairs shall comply with the following requirements:*
(f) Guards and handrails. -Stairs shall have walls, grilles, or guards at the sides and shall have handrails on both sides, except that stairs less than forty-four inches wide may have a handrail on one side only. Handrails shall provide a finger clearance of one and one-half inches, and shall project not more than three and one half inches into the required stair width.

Egress stair guardrails violates IBC §1003.2 regarding permissible opening size of baluster. This violation is a hazard for children

*IBC §**1003.2.12 Guards.***
Guards shall be located along open-sided walking surfaces, mezzanines, industrial equipment platforms, stairways, ramps and landings which are located more than 30 inches (762 mm) above the floor or grade below. Guards shall be adequate in strength and attachment in accordance with the International Building Code. Guards shall also be located along glazed sides of stairways, ramps and landings which are located more than 30 inches (762 mm) above the floor or grade below where the glazing provided does not meet the strength and attachment requirements in the International Building Code.



NO GUARDS PROVIDED AT RAILINGS.

Doors into egress stairs are not self closing nor of an acceptable fire rated assembly in violation of BC §27-373 (b). This violation is a fire hazard.

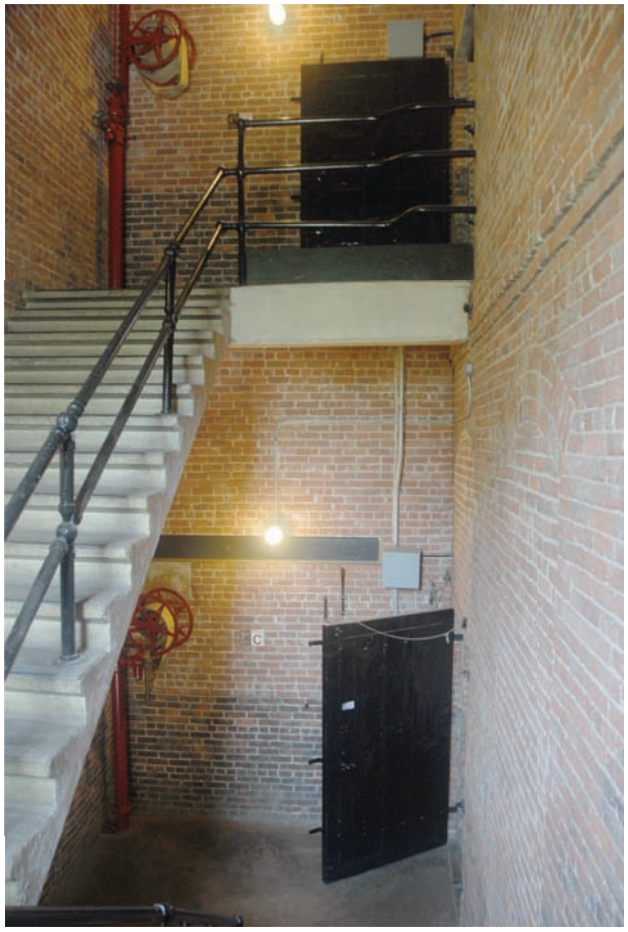


DOORS NOT SELF CLOSING,
in violation of BC §27-373

BC §[C26-604.6] 27-373 Horizontal exits. –
(b)Door requirements. - Doors shall be swinging, self-closing doors having a fire protection rating of one and one-half hours, except that doors [sic] in fire divisions having a three hour or four hour fire-resistance rating shall have opening protective as required by table 5-3. Each swinging door shall swing in the direction of exit travel, and when travel is in both directions, as when two areas of refuge serve as areas of refuge for each other,

at least two door openings shall be provided, the doors of which shall swing in opposite directions. Signs shall be placed over each door on the side from which egress is made, indicating the exit door.





DOORS TO STAIRWELL ARE NOT FIRE RATED OR SELF CLOSING.

Changes in level throughout building interior access routes and paths of egress are in violation of BC §27-370 (d) and BC §27-371 (h).

BC [C26-604.3] §27-370 Exit passageways. –

Exit passageways shall be maintained free of obstructions at all times. Not more than fifty percent of the total number of vertical exits provided for a building may be served by a single exit passageway, except as provided in subdivision (h) of section 27-370 of this article.

(d) Changes in level. - Changes in level requiring less than two risers in an exit passageway shall be by a ramp complying with section 27-377 of this article. Risers and treads shall comply with the requirements of subdivision (e) of section 27-375 of this article.

BC [C26-604.4] §27-371 Doors. -

Exit doors and doors providing access to exits shall comply with the following:

(h)Floor level. - The floor on both sides of all exit and corridor doors shall be essentially level and at the same elevation for a distance, perpendicular to the door opening, at least equal to the width of the door leaf, except that where doors lead out of a building the floor level inside may be seven and one-half inches higher than the level outside.



CHANGE IN LEVEL 2+ INCHES.
in violation of BC §27-370



CHANGE IN LEVEL 2+ INCHES.
in violation of BC §27-371



CHANGE IN LEVEL 1+ INCHES.
in violation of BC §27-370

12. KITCHENS - SYSTEM NOT REPLACED, NOT TO CODE.

As a building-wide system, kitchens were not installed per approved plans. Many tenants installed their own cooking equipment.

150 cfm of mechanical exhaust is required for kitchen ventilation as per BC§ 27-758. None of the units inspected met this requirement.

BC §[C26-1207.2] 27-758 Kitchens. -

Kitchens shall be ventilated as follows: (a) Kitchens located within dwelling units and having a floor area of greater than fifty-nine square feet shall have natural ventilation as prescribed in article six of this subchapter. When the floor area is fifty-nine square feet or less, the kitchen shall be ventilated by either of the following: (1) Natural means complying with article six of this subchapter and further that the windows shall have a minimum width of twelve inches, a minimum area of thee square feet or ten percent of the floor area of the space whichever is greater and so constructed that at least one-half of their required area may be opened. When the space is located at the top story the window or windows may be replaced with a skylight whose minimum width shall be twelve inches, whose minimum area shall be four square feet or one-eighth the floor area of the space whichever is greater and shall have ventilating openings of at least one-half of the required area of the skylight. *As enacted but "three" probably intended. (2) Mechanical means exhausting at least two cfm of air per square feet of floor area. Where doors are used to separate the space, the lower portion of each door shall have a metal grille containing at least forty-eight square inches of clean openings or in lieu of such grille two clear open spaces may be provided, each of at least twenty-four square inches, one between the bottom of each door and the floor and the other between the top of each door and the head jamb. (b) Kitchens, except those located within dwelling units, and side spaces, where cooking of any kind is done, shall be ventilated by either of the following; provided that in no instance may there be any violation of the nuisance provisions of the health code. (1) Natural means complying with article six of this subchapter and supplemented with auxiliary mechanical supply and exhaust ventilation adequate to remove the fumes and smoke from the cooking equipment when operating.*

(2) Mechanical means exhausting at least three cfm of air per square foot of floor area, but in no case less than one hundred fifty cfm. Such air shall be exhausted through duct or chimney constructed in accordance with the provisions of subchapters thirteen and fifteen of this chapter.

(c) Kitchens, snack bars, or pantries, where the operation consists of heating or warming previously prepared food that was cooked elsewhere, or preparation of food in vending machines may be ventilated by either of the following: (1) Natural ventilation complying with article six of this subchapter.

(2) Mechanical ventilation complying with article seven of this subchapter.

Three (3) out of ten (10) roof mounted kitchen exhaust fans were not operational at the time of inspection in violation of ventilation requirements of BC §27-758.

13. BATHROOMS - SYSTEM NOT REPLACED, NOT TO CODE.

As a building-wide system, some bathrooms were built as per approved plans while other bathrooms were delivered lacking residential fittings in violation of MRL 171.4. Individual tenants completed the installation of fixtures and fittings in the partially delivered bathrooms.

MRL 171.4 Water closet and bath accommodations.-

Every apartment arranged for permanent occupancy shall contain a bath or shower accessible from every bedroom without passing through any other bedroom. In dwellings arranged for transient occupancy there shall be at least one shower or bath for every eight resident occupants.

Shower pans supplied without shower heads.

BC §[1600.6] 27-901 Plumbing and Gas Piping General requirements.

-(l) Required plumbing fixtures. Every dwelling unit in buildings classified in occupancy groups J-2 and J-3 shall have at least one water closet, one lavatory, one kitchen-type sink, and one bathtub or shower.

In Wings B & C, all bathroom doors open directly into kitchens and kitchenettes in violation of MDL §76.

MDL § 76. Water-closet and bath accommodations. *1. General requirements. This section shall apply to all dwellings whenever erected or converted except as herein provided.*

c. No water-closet shall open directly into any kitchen or kitchenette in a multiple dwelling erected after April eighteenth, nineteen hundred twenty-nine.

Several units on the ground floor experience periodic sewage backup into their shower stalls and floor drains in violation of codes MRL §305 (1) and MDL §77. Conditions are unsanitary.

MDL § 77. Plumbing and drainage.

1. In every multiple dwelling all liquid or water-borne waste from plumbing fixtures shall be conveyed by a house drain and house sewer to a street sewer or to a combined street storm-water main and sewer, unless no such sewers are available. It shall be unlawful to erect a multiple dwelling which is to be occupied by five families or more unless a connection is made with a street sewer or combined street storm-water main and sewer.

2. For every multiple dwelling where neither kind of sewer is available, provision shall be made for disposing of such waste as may be required by local law.

3. All roofs, terraces, shafts, courts, areas and yards in every multiple dwelling shall be properly graded, drained and connected with a street storm-water main or combined sewer and street storm-water main so that all storm water may pass freely into it, except that where no street storm-water main or combined sewer and street storm-water main exists, the department may permit the storm water from such areas and spaces to drain into a street gutter which leads to a natural channel or water course, or into a dry well. When required by the

department, the shafts, courts, areas and yards shall be properly concreted. Every roof shall be so drained that all storm water shall be conveyed therefrom in a manner that will prevent dripping to the ground or the causing of dampness in walls, ceilings, yards, shafts or areas. Nothing in this section shall be deemed to prevent the turfing over of any yard or court space or the planting of shrubs or trees therein when approved by the department.

4. The owner of every multiple dwelling or part thereof shall thoroughly cleanse and keep clean at all times, and in good repair, the entire plumbing and drainage system including every water-closet, toilet and sink and every other plumbing fixture therein.

MRL §305. Nuisances. *1. The term nuisance shall be held to embrace whatever is dangerous to human life or detrimental to health and shall include but not be limited to: (a) a public nuisance as known at common law, statutory law and in equity jurisprudence, and (b) a dwelling that, in violation of this chapter or of any other state or local law, ordinance or regulation, does not have adequate egress, safeguards against fire, adequate electrical service, installation and wiring, structural support, ventilation, plumbing, sewerage or drainage facilities, is overcrowded or inadequately cleaned or lighted and the condition constituting such violation is dangerous to human life or detrimental to health. All such nuisances are hereby declared to be unlawful.*

14. FLOORS - SYSTEM NOT REPLACED, NOT TO CODE.

No floors were replaced as part of the conversion to residential use as mandated by DHCR.



OLD FLOORING PATCHED



OLD FLOORING PATCHED

15. CEILINGS AND WALL SURFACES - SYSTEM NOT REPLACED, NOT TO CODE.

The majority of ceilings and wall surfaces exposed existed prior to the conversion to residential. The interior side of exterior walls were not insulated as mandated by the NYS Energy Code.



Roughly 15% of public hallways inspected have suspended ceilings. New wall surfaces are limited to gypsum wall board partitions separating the individual apartment units.

The existing exterior brick cavity wall assembly is composed of two layers of nominally sized brick and an air space. See photo on page 24 of this report. This existing exterior brick cavity wall has no insulation or vapor barrier,and as such carries an insulating value of R3 in violation of in violation of 2002 ECCCNYS for Zone 10B (Kings county) which prescribes an R25 value for walls in a building with 40% glazing area. Lack of insulation and vapor barriers contribute to high humidity and problems with heating. Current energy codes are much more strict than the 2002 version.

Summary of Residential Energy Code Comparison DRAFT COPY 12/7/00

	N.Y.S. Energy Conservation Construction Code Effective March 1, 1991	**Proposed N.Y.S. Energy Conservation Code Based on the 2001 IECC**
Typical Prescriptive Requirements (7000 Degree Days) 17% Glazing Non-electric	Exterior Wall R-18 Roof/Ceiling R-24 Foundation Wall R-10 Glazing R-1.7	Exterior Wall R-25 Roof/Ceiling R-49 Foundation Wall R-15 Glazing R-3.0 Roughly 30% overall difference between codes
Electrically Heated Residential Buildings	Requires more stringent envelope than for non-electrically heated buildings	Same
Recessed Lighting Fixtures installed in Building envelope	No specific requirements	Specific requirements (§502.1.3) Sealed recessed lighting fixtures must meet at least one of three requirements.
Windows and Door Assemblies installation	*Allowable infiltration rates* Windows 0.37cfm/ft. sash crack Doors 0.5 cfm/ft^2	*Allowable infiltration rates* Windows 0.3 cfm/ft^2 Doors Sliders 0.3 cfm/ft^2 Doors Swinging 0.3 cfm/ft^2
Mass Walls	No specific requirements	Can consider thermal mass of building component for compliance (ex. applies to log homes, sand masses, etc.)
Sunrooms	No specific requirements	Specific requirements for additions with glazing >40%
Mechanical Equipment Efficiency	Most equipment established by preemptive federal law Does not allow heating and air conditioning efficiency trade-offs	Same Includes more heating and cooling system types Allows heating and air conditioning efficiency trade-offs to reduce building envelope thermal requirements. (Software)

A 2 hour fire rated suspended ceiling as shown in approved DOB plans for Job # 300959791 was never built.

16. POINTING OR EXTERIOR SURFACE REPAIR AS NEEDED - SYSTEM NOT REPAIRED 'AS NEEDED'.

Visual inspection of the exterior facade indicates spot repointing was done to the brick in all Wings of the building. Severe water infiltration problems dating back to 2002 suggest that further exterior surface repair is required.

17. ALL DOORS AND FRAMES INCLUDING THE REPLACEMENT OF NON FIRE-RATED ITEMS WITH FIRE-RATED ONES - SYSTEM NOT REPAIRED, NOT TO CODE.

Not all doors and frames were replaced. Most doors entering from hallway to stairwell are existing prior to the conversion to residential and do not meet code standards for fire safety and accessibility.

Doors to most apartment units inspected were not self closing in violation of BC § 27-371 (b). Doors that are not self-closing can permit smoke from a unit into the egress corridor.

BC §[C26-604.4] 27-371 Doors. -

Exit doors and doors providing access to exits shall comply with the following:

(b)Corridor doors. - Doors that provide access to interior corridors required to have a one hour fire- resistance rating shall be self-closing swinging fire doors with a three-quarter hour fire-protection rating, except that in buildings classified in occupancy group G, in which an acceptable interior fire alarm system is installed and in which regular supervised fire drills are held, the doors to rooms or spaces devoted exclusively to non-hazardous uses in occupancy group G need not be fire-rated, provided they are swinging, self-closing one and three-quarter inch solid core wood, and have a maximum area of seven hundred twenty square inches of one-quarter inch thick wired glass vision panels. Other corridor doors except those provided for in subdivision (d) of section 27-369 of this article, shall be self-closing, swinging, noncombustible or one and three- quarter inch solid core wood doors, except that in buildings classified in occupancy group H-2 the doors need not be self-closing. Noncombustible mail slots having an area not exceeding forty square inches may be provided in corridor doors when the opening is protected by a closure activated by gravity or a spring device so as to keep it closed when not in use. Noncombustible louvers may be installed in corridor doors opening into toilets, service sink closets, and electric closets. Notwithstanding the foregoing restrictions in this subdivision, doors not prohibited by subdivision (d) of this section may open from spaces into corridors when in compliance with all of the provisions of paragraph three of subdivision (h) of section 27-370 of this article.

LIFE SAFETY ITEMS

A. SELF CLOSING DOORS

Doors into egress stairs not rated and not self closing contrary to BC §27-373

BC §[C26-604.6] 27-373 Horizontal exits. –

A horizontal exit to an area of refuge may consist of doors through walls or partitions having at least a two hour fire-resistance rating; of a balcony or exterior vestibule leading around the end of a fire division to another fire area or building; or it may be a bridge or tunnel between two buildings. Horizontal exits shall comply with the following:

(a) Capacity. - The capacity of horizontal exits shall be as listed in table 6-1. Only the widths of doors swinging in the direction of exit travel to the area of refuge shall be counted.

(b) Door requirements. - Doors shall be swinging, self-closing doors having a fire protection rating of one and one-half hours, except that doors [sic] in fire divisions having a three hour or four hour fire-resistance rating shall have opening protective as required by table 5-3. Each swinging door shall swing in the direction of exit travel, and when travel is in both directions, as when two areas of refuge serve as areas of refuge for each other, at least two door openings shall be provided, the doors of which shall swing in opposite directions. Signs shall be placed over each door on the side from which egress is made, indicating the exit door.

Doors into corridors not self closing per BC §27-371(b). Doors that violate self-closing codes are a fire hazard.

BC §[C26-604.4] 27-371 Doors. -

Exit doors and doors providing access to exits shall comply with the following:

(b)Corridor doors. - Doors that provide access to interior corridors required to have a one hour fire- resistance rating shall be self-closing swinging fire doors with a three-quarter hour fire-protection rating, except that in buildings classified in occupancy group G, in which an acceptable interior fire alarm system is installed and in which regular supervised fire drills are held, the doors to rooms or spaces devoted exclusively to non-hazardous uses in occupancy group G need not be fire-rated, provided they are swinging, self-closing one and three-quarter inch solid core wood, and have a maximum area of seven hundred twenty square inches of one-quarter inch thick wired glass vision panels. Other corridor doors except those provided for in subdivision (d) of section 27-369 of this article, shall be self-closing, swinging, noncombustible or one and three- quarter inch solid core wood doors, except that in buildings classified in occupancy group H-2 the doors need not be self-closing. Noncombustible mail slots having an area not exceeding forty square inches may be provided in corridor doors when the opening is protected by a closure activated by gravity or a spring device so as to keep it closed when not in use. Noncombustible louvers may be installed in corridor doors opening into toilets, service sink closets, and electric closets. Notwithstanding the foregoing restrictions in this subdivision, doors not prohibited by subdivision (d) of this section may open from spaces into corridors when in compliance with all of the provisions of paragraph three of subdivision (h) of section 27-370 of this article.

B. FIRE DIVISIONS

Wall separating inspected apartment on ground floor and gas meter room is not rated, penetrations are not fire stopped and light from the gas meter room to the adjoining apartment is visible in violation of BC §Table 5-2. Wall should be continuous from floor slab to underside of ceiling with a fire rating of 2 hours.

TABLE 5-1 FIRE SEPARATIONS

Key: Fire-resistance ratings are given in hours. For Table 5-1, read above heavy line. For Table 5-2, read below heavy line.
NR—No Requirement

OCCU-PANCY	A	B-1	B-2	C	D-1	D-2	E	F-1a	F-1b	F-2	F-3	F-4	G	H-1	H-2	J-1	J-2	J-3
A	4	4	4	4	4	4	4[c]	4	4	4	4	4	4	4	4	4	4	4
B-1	4	3	NR	1[bc]	NR	NR	1[ac]	1[c]	1[c]	—	1[c]	1[c]	1[c]	1½[c]	1½[c]	1[c]	1[c]	1[c]
B-2	4	3	2	NR	NR	NR	NR	NR	NR	—	NR	NR	NR	NR	NR	NR	NR	NR
C	4	3	2	2	1	NR	NR	NR	NR	—	NR	NR	NR	1	1	1	1	1
D-1	4	3	3	3	3	NR	1[a]	1	1	—	1	1	1	1½	1½	1	1	1
D-2	4	3	2	2	3	2	NR	NR	NR	—	NR	NR	NR	NR	NR	NR	NR	NR
E	4	3	2	2	3	2	2	NR	NR	—	NR	NR	NR	1[a]	1[a]	1[a]	1[a]	1[a]
F-1a	4	3	2	2	3	2	2	2	NR	—	NR	NR	NR	1	1	1	1	1
F-1b	4	3	2	2	3	2	2	2	2	—	NR	NR	NR	1	1	1	1	1
F-2	4	3	2	2	3	2	2	2	2	2	—	—	—	—	—	—	—	—
F-3	4	3	2	2	3	2	2	2	2	2	2	NR	NR	1	1	1	1	1
F-4	4	3	2	2	3	2	2	2	2	2	2	2	NR	1½	1½	1	1	1
G	4	3	2	2	3	2	2	2	2	2	2	2	2	NR	NR	NR	NR	NR
H-1	4	3	2	2	3	2	2	2	2	2	2	2	2	2	NR	1	1	1
H-2	4	3	2	2	3	2	2	2	2	2	2	2	2	2	2	1	1	1
J-1	4	3	2	2	3	2	2	2	2	2	2	2	2	2	2	2	NR	NR
J-2	4	3	2	2	3	2	2	2	2	2	2	2	2	2	2	2	2	NR
J-3	4	3	2	2	3	2	2	2	2	2	2	2	2	2	2	2	2	2

TABLE 5-2 FIRE DIVISIONS

C. EGRESS

Door swing into egress stairwell reduces the required width of the stair landing and violates BC §27-375 (g)

Egress stair width of 54" requires two handrails and is in violation of BC §27-375 (f)

Egress stair guardrails violates IBC §1003.2 regarding permissible opening size of baluster.

IBC §1003.2.12 Guards.

Guards shall be located along open-sided walking surfaces, mezzanines, industrial equipment platforms, stairways, ramps and landings which are located more than 30 inches (762 mm) above the floor or grade below.

Guards shall be adequate in strength and attachment in accordance with the International Building Code. Guards shall also be located along glazed sides of stairways, ramps and landings which are located more than 30 inches (762 mm) above the floor or grade below where the glazing provided does not meet the strength and attachment requirements in the International Building Code.

Exterior Egress stairs at Delevan Street are not uniform in width and height, violate the height limitations as per MDL §52.

MDL §52. Stairs.

1. In every multiple dwelling erected after April eighteenth, nineteen hundred twenty-nine, every interior stair, fire-stair and fire-tower and every exterior stair in connection with any dwelling altered or erected after January first, nineteen hundred fifty-one, shall be provided with proper balustrades or railings and all such interior and exterior stairs shall be kept in good repair and free from any encumbrance. Every such stair, fire-stair and fire-tower more than three feet eight inches wide shall be provided with a handrail on each side.

2. The upper surface of every balustrade or railing placed in any stair after April eighteenth, nineteen hundred twenty-nine, shall be at least two feet six inches and at most two feet eight inches above the front edge of the stair treads, and at any stair landing shall be at least two feet eight inches and at most three feet above the level of such landing.

3. The treads and risers of every stair, fire-stair and fire-tower constructed after April eighteenth, nineteen hundred twenty-nine, in any multiple dwelling shall be of uniform height and width in any one flight. Each tread, exclusive of nosing, shall be not less than nine and one-half inches wide; each riser shall not exceed seven and three-quarters inches in height; and the product of the number of inches in the width of the tread and the number of inches in the height of the riser shall be at least seventy and at most seventy-five.





5 ¾" & 8 ¾" RISER IN SAME FLIGHT OF STAIRS ON DELEVAN ST.

Gas Meter room door opens directly into a egress vestibule and is not a fire rated, self closing door assembly

Length of corridors are required to be subdivided by smoke barriers every 150 feet, per BC §27-369. No such smoke barriers were identified.

BC §[C26-604.2] 27-369 Corridors.-

Corridors shall be kept readily accessible and unobstructed at all times. Corridors shall be kept free of combustible contents except that in buildings classified in occupancy groups G, H-1 and H-2, combustible contents may be stored in noncombustible lockers and combustible bulletin boards meeting the requirements of table 5-4 shall be permitted.

(c) Length. - Corridors shall be subdivided by smoke barriers, as defined in subchapter two, into the following lengths:

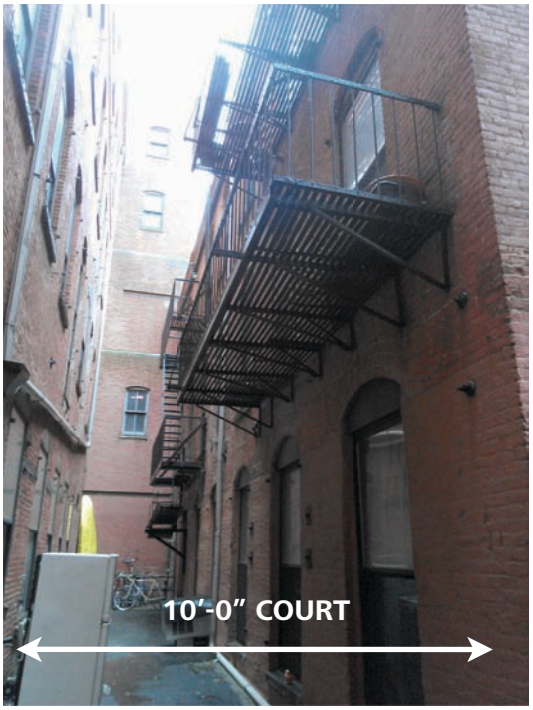
Educational occupancy group G.....300 ft.

Institutional occupancy groups H-1 and H-2.....150 ft.

Residential occupancy groups J-1 and J-2.....150 ft.

Where smoke barriers are penetrated by doors, such doors shall be smoke stop doors in conformance with subdivision (c) of section 27-371 of this article.

Balconies exist between Wings A and C. Per plans filed with the Department of Buildings, they should have been demolished.



D. PROTECTED OPENINGS

Per BC § Table 3-4 and MDL §277 1 (b) windows in Wing A, corridors on 2nd, 3rd and 4th floors and in residential units in Wing C, require a minimum of one sprinkler head per window or window automatic closing devices. Areas observed do not comply with requirements for converted buildings.

MDL §277. *Occupancy permitted. Any building in any city of more than one million persons which at any time prior to January first, nineteen hundred seventy-seven was occupied for loft, commercial, institutional, public, community facility or manufacturing purposes, may, notwithstanding any other article of this chapter, or any provision of law covering the same subject matter (except as otherwise required by the local zoning law or resolution), be occupied in whole or in part for joint living-work quarters for artists or general residential purposes if such occupancy is in compliance with this article. Such occupancy shall be permitted only if the following conditions are met and complied with.*

1. (a) The exterior walls of the building shall be non-combustible and have a fire-resistive rating of at least three hours unless the exterior wall or walls, measured on a horizontal plane perpendicular to said exterior wall or walls, is a minimum of thirty feet distant in a direct unobstructed line from another structure, except that a wet pipe sprinkler system, with maximum sprinkler spacing of four feet, must be provided along such wall or walls to protect exposed, unrated columns or beams at the interior of the wall in non-fireproof buildings.

(b) Window openings in exterior walls shall conform with the limitations of table 3-4 chapter twenty-six of the administrative code of the city of New York, unless such windows are fire protected and provided with either a minimum of one sprinkler head per window or window automatic closing devices, acceptable to the department of buildings.

Per BC § Table 3-4 and MDL §277 (see above) units in Wing C facing Wing B require a minimum of one sprinkler head per window or automatic closing devices. Per the typical building sprinkler layout and window installation. Areas observed do not comply with requirements for converted buildings.

E. PARAPETS

None of the parapets in any of the wings of the building comply with BC §27-334. No railing has been alternatively installed.

BC §[C26-503.4] 27-334 Protective guards. - *Buildings that are more than twenty-two feet in height and have roofs that are flatter than twenty degrees to the horizontal shall be provided with a parapet not less than three feet six inches high, or be provided with a three foot six inch high railing or fence, or a combination of a parapet and railing or fence which together are not less than three feet six inches high. Railings or fences may be located inward from the face of the exterior wall a distance not exceeding six feet, and shall be of a type that will prevent children from crawling through or over them. Where roofs are used for recreational purposes, wire fencing at least ten feet high shall be constructed. Where ball games are played on roofs the wire fencing shall be extended to provide an overhead closure. Except on buildings of classes II-D or II-E construction, railings or fences shall be of noncombustible material. Railings shall be constructed as required in section 27- 558 of article three of subchapter nine of this chapter.*

F. FIRESTOPPING

The penetrations through the gas meter rooms have not been appropriately sealed and firestopped, required in order to fire resistance ratings in accordance with code.

The penetrations through the building egress stairwells have not been appropriately sealed and firestopped, required in order to fire resistance ratings in accordance with code.

The penetrations through the individual, demised apartments have not been firestopped in order to meet code required fire resistance ratings.

BC §[C26-504.5] 27-343 Ducts, pipes and conduits through rated construction. -

(b) Noncombustible pipes and conduits. – Noncombustible pipes and conduits may pass through construction required to have a fire-resistance rating provided that the space between the pipe or conduit and its sleeve or opening does not exceed one-half inch and is completely packed with mineral wool or equivalent noncombustible material and is closed off by close- fitting metal escutcheons on both sides of the construction; and provided further that the aggregate net area of such openings does not exceed twenty-five square inches in any one hundred square feet of wall or floor area (excluding the areas of openings for sleeves which are firestopped in conformance with this section and section 27-345).



G. SPRINKLER / FIRE ALARM / STANDPIPE

The fire hose rack assemblies at each floor have not been installed at the code required heigh. They must be between 5′ and 6′ above the stair landings.



The water flow meters on the individual floors installed at the standpipe floor control valve assemblies are not tied into central station connection in violation of BC §903.4.2

There are no tamper switches installed at the standpipe floor control valve assemblies in violation of BC §903.4

f. The water flow alarm, tamper switches and deluge system equipment shall be provided with central station supervision in addition to the required local alarm.

The sprinkler heads installed under the mezzanines at the apartments in Wing B are not spaced in accordance with NFPA §8.10.3.2 and Table 8.6.2.2.1(b). They are installed further than the code required 7'-6" from the edge of the mezzanine. Not all sprinklers are installed a minimum of 4" from a wall per NFPA §8.10.4.6.

NFPA §8.10.4.6 Minimum Distance from Walls.

8.10.4.6.1

Sprinklers shall be located a minimum of 4 in. (102 mm) from an end wall.

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Table 8.6.2.2.1(a) Protection Areas and Maximum Spacing of Standard Pendent and Upright Spray Sprinklers for Light Hazard

Construction Type	System Type	Protection Area		Maximum Spacing	
		ft^2	m^2	ft	m
Noncombustible obstructed and unobstructed	Pipe schedule	200	18.6	15	4.6
Combustible unobstructed with exposed members 3 ft (0.91 m) or more on center	Pipe schedule	200	18.6	15	4.6
Noncombustible obstructed and unobstructed	Hydraulically calculated	225	20.9	15	4.6
Combustible unobstructed with exposed members 3 ft (0.91 m) or more on center	Hydraulically calculated	225	20.9	15	4.6
Combustible obstructed with exposed members 3 ft (0.91 m) or more on center	All	168	15.6	15	4.6
Combustible obstructed or unobstructed with exposed members less than 3 ft (0.91 m) on center	All	130	12.1	15	4.6
Combustible concealed space under a pitched roof having combustible wood joist or wood truss construction with members less than 3 ft (0.91 m) on center with slopes having a pitch of 4 in 12 or greater	All	120	11.1	15 parallel to the slope 10 perpendicular to the slope*	4.6 parallel to the slope 3.05 perpendicular to the slope*

*See 8.6.2.2.1.1.

Table 8.6.2.2.1(b) Protection Areas and Maximum Spacing of Standard Pendent and Upright Spray Sprinklers for Ordinary Hazard

Construction Type	System Type	Protection Area		Maximum Spacing	
		ft^2	m^2	ft	m
All	All	130	12.1	15	4.6

8.6.2.2.1.1 Where the dimension perpendicular to the slope exceeds 8 ft (2.4 m), the minimum pressure shall be 20 psi (1.4 bar).

8.6.2.2.2 In any case, the maximum area of coverage of a sprinkler shall not exceed 225 ft^2 (21 m^2).

8.6.3 Sprinkler Spacing (Standard Pendent and Upright Spray Sprinklers).

8.6.3.1 Maximum Distance Between Sprinklers. The maximum distance permitted between sprinklers shall comply with Table 8.6.2.2.1(a) through Table 8.6.2.2.1(d).

8.6.3.2 Maximum Distance from Walls.

8.6.3.2.1 The distance from sprinklers to walls shall not exceed one-half of the allowable distance between sprinklers as indicated in Table 8.6.2.2.1(a) through Table 8.6.2.2.1(d).

Table 8.6.2.2.1(c) Protection Areas and Maximum Spacing of Standard Pendent and Upright Spray Sprinklers for Extra Hazard

Construction Type	System Type	Protection Area		Maximum Spacing	
		ft^2	m^2	ft	m
All	Pipe schedule	90	8.4	12*	3.7*
All	Hydraulically calculated with density ≥0.25	100	9.3	12*	3.7*
All	Hydraulically calculated with density <0.25	130	12.1	15	4.6

*In buildings where solid structural members create bays up to 25 ft (7.6 m) wide, maximum spacing between sprinklers is permitted up to 12 ft 6 in. (3.8 m).

8.6.3.2.2 The distance from the wall to the sprinkler shall be measured perpendicular to the wall.

8.6.3.2.3* The requirements of 8.6.3.2.1 shall not apply where walls are angled or irregular, and the maximum horizontal distance between a sprinkler and any point of floor area protected by that sprinkler shall not exceed 0.75 times the allowable distance permitted between sprinklers, provided the maximum perpendicular distance is not exceeded.



8.10 Residential Sprinklers.

8.10.1 Reserved

8.10.2* Listings.

8.10.2.1 Areas of coverage shall be in accordance with the manufacturer's listing.

8.10.2.2 Where residential sprinklers are installed on a slope greater than 2 in 12, they shall be listed for this application.

8.10.3 Distances Between Sprinklers.

8.10.3.1 Maximum distances between sprinklers shall be in accordance with the manufacturer's listing.

8.10.3.2 The distance between the sprinkler and the wall shall not exceed half the maximum allowable distance between sprinklers per the manufacturer's listing.

ACCESSIBILITY

The Building violates accessibility and adaptability requirements per local, state and national codes.

A. PRIMARY ENTRANCE

The building has three primary entrances, each with separate sets of mailboxes; Two on Delevan Street and one on Verona Street. None of the entrances are accessible. An accessible ramp at 19 Delevan Street was shown on approved DOB plans per Job # 300959791 but was never built. Not having a accessible primary entrance violates BC §27-292.5

BC §27-292.5 Accessibility. - *(a) Primary entrance(s). - The primary entrance(s) for buildings shall be accessible, except for buildings classified in occupancy group A, J-3 and/or other spaces which normally are not frequented by the public or employees of the facility.*



B. ADAPTABLE DWELLING UNITS

All dwelling units in buildings with elevators shall be adaptable. Adaptable bathrooms and kitchens shall be constructed in accordance with requirements set forth in BC §27-292.8(b) and §RS 4-6. Visual inspection of select dwelling units did not comply with these codes.

Adaptable with respect to:

- Access doorway or opening
- Clear floor space
- Floor surface
- Bathroom, kitchen and kitchenette facilities and controls capable of being made usable
- Space and utilities for usable range, (or cooktop or oven), refrigerator/freezer, (dishwasher if provided).

Such items shall include water closet and toilet paper dispenser, lavatory and removable base cabinet, mirrors, medicine cabinet, bathtub and controls, bathtub and shower enclosure, reinforced areas for grab bars, clearance between opposing base cabinets, counter tops, appliances and walls, adjustable or replaceable sink and removable base cabinet, as well as storage cabinets, drawers and shelves.

BC §27-292.8 Adaptable dwelling units. – *(a) General requirements. (1) Adaptable dwelling units are units that contain habitable rooms, kitchens, kitchenettes and bathrooms in residential buildings other than in occupancy group J-3 which when constructed are on an accessible route (except as set forth in this subdivision) and are constructed and equipped as defined in section 27-232 and as set forth in this subarticle so that they can be converted to be used, with a minimum of structural change, by all categories of people having physical disabilities. (2) Such units shall be provided with door widths and clear floor spaces for making dwelling units usable as set forth in reference standard RS 4-6 when occupied by people having physical disabilities. (3) Interior access, floor surfaces, adaptable kitchens, adaptable kitchenettes and adaptable bathrooms in these dwelling units shall comply with the requirements set forth in reference standard RS 4-6. (4) Where an adaptable dwelling unit occupies two or more stories within itself, accessibility shall only be required at the first story of such dwelling unit provided that: a. The second story is accessible from without; or that b. Equivalent accessible functional facilities are provided on the first story; or that c. The stair within the dwelling unit has a minimum width of three feet. (b) Number of adaptable dwelling units. - (1) All dwelling units in buildings with elevators shall be adaptable unless usable dwelling units are provided in accordance with section 27-292.9. (2) At least one but not less than twenty-five percent of the total number of dwelling units in buildings without an elevator, which have dwelling units on the ground floor and which contain three or more dwelling units, shall be adaptable, unless usable dwelling units are provided in accordance with section 27-292.9. Such adaptable dwelling unit(s) shall be located on the ground floor. Where determination by percentage results in a number containing a decimal of 0.5 or more,*

the next higher number shall be used, but such number shall not exceed the number of dwelling units actually proposed for the ground floor.

***** REFERENCE STANDARD RS 4-6***
FACILITIES FOR PEOPLE HAVING PHYSICAL DISABILITIES

4.5.2 CHANGES IN LEVEL

Changes in level up to 1/4 inch (6 mm) may be vertical and without edge treatment. Changes in level up to 1 inch (25 mm) shall be beveled with a slope no greater than 1:2 (see figure 7 (c) and (d)). A 1-inch rise may be vertical for the first 1/4 inch. Changes in level greater than 1 inch (25 mm) shall be accomplished by means of a ramp that complies with 4.7 or 4.8. Within a dwelling unit, when the saddle provided is made of a stone or ceramic material that by its nature cannot be brought into compliance with the code requirements for slope, then at the request of a disabled occupant, the owner must bring such a nonconforming saddle into conformance with the code by addition of an adaptable strip as show in diagram 7(e).

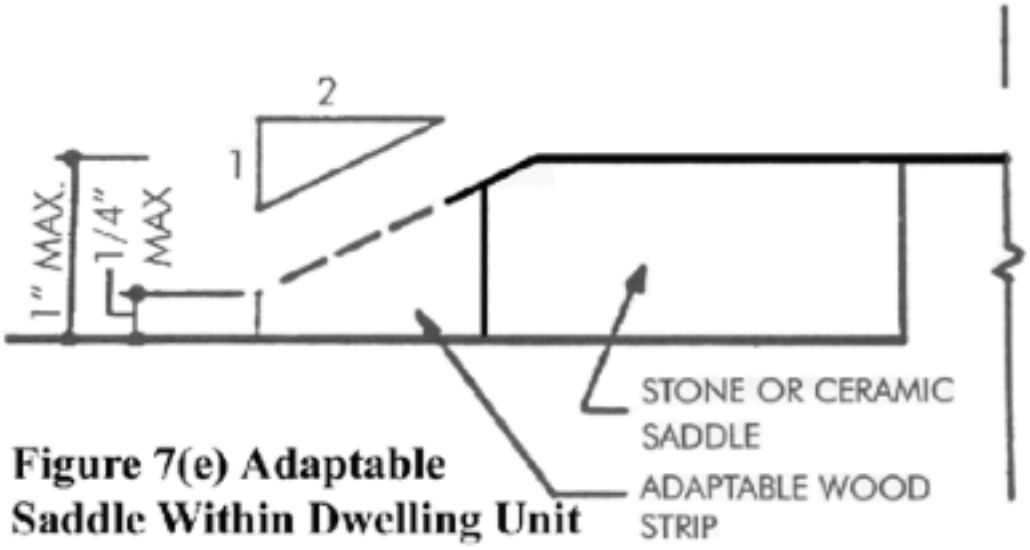


Figure 7(e) Adaptable Saddle Within Dwelling Unit

Per RS §4-6 4.5.2 and ADA §4.38 changes in level are required to be beveled if under 1" and ramped if over 1" Changes in level exist throughout the building in violation of code.



SAMPLE OF MULTIPLE CHANGES IN LEVELS AT ENTRANCE TO EGRESS STAIR

ADA §4.10 Elevators.-

4.10.1 General. *Accessible elevators shall be on an accessible route and shall comply with 4.10 and with the ASME A17.1-1990, Safety Code for Elevators and Escalators. Freight elevators shall not be considered as meeting the requirements of this section unless the only elevators provided are used as combination passenger and freight elevators for the public and employees.*

4.10.2 Automatic Operation. *Elevator operation shall be automatic. Each car shall be equipped with a self-leveling feature that will automatically bring the car to floor landings within a tolerance of 1/2 in (13 mm) under rated loading to zero loading conditions. This self-leveling feature shall be automatic and independent of the operating device and shall correct the overtravel or undertravel.*

4.10.3 Hall Call Buttons. *Call buttons in elevator lobbies and halls shall be centered at 42 in (1065 mm) above the floor. Such call buttons shall have visual signals to indicate when each call is registered and when each call is answered. Call buttons shall be a minimum of 3/4 in (19 mm) in the smallest dimension. The button designating the up direction shall be on top. (See Fig. 20.) Buttons shall be raised or flush. Objects mounted beneath hall call buttons shall not project into the elevator lobby more than 4 in (100 mm).*

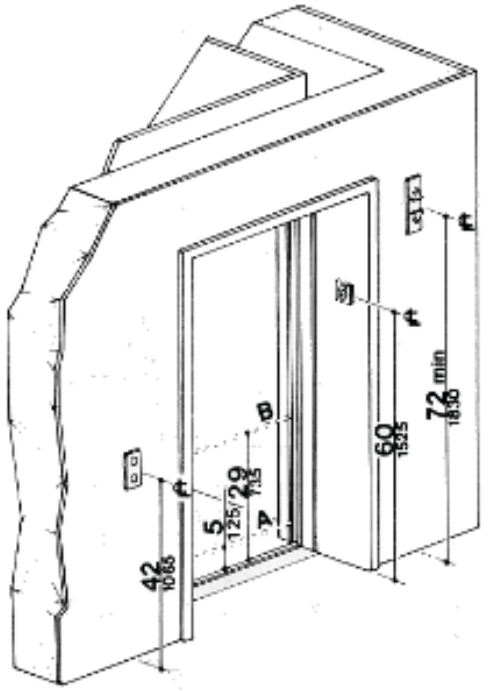


Figure 20
Hoistway and Elevator Entrances

4.10.4 Hall Lanterns. *A visible and audible signal shall be provided at each hoistway entrance to indicate which car is answering a call. Audible signals shall sound once for the up direction and twice for the down direction or shall have verbal annunciators that say "up" or "down." Visible signals shall have the following features:*

(1) Hall lantern fixtures shall be mounted so that their centerline is at least 72 in (1830 mm) above the lobby floor. (See Fig. 20.)

(2) Visual elements shall be at least 2-1/2 in (64 mm) in the smallest dimension.

(3) Signals shall be visible from the vicinity of the hall call button (see Fig. 20). In-car lanterns located in cars, visible from the vicinity of hall call buttons, and conforming to the above requirements, shall be acceptable.

4.10.5 Raised and Braille Characters on Hoistway Entrances. *All elevator hoistway entrances shall have raised and Braille floor designations provided on both jambs. The centerline of the characters shall be 60 in (1525 mm) above finish floor. Such characters shall be 2 in (50 mm) high and shall comply with 4.30.4. Permanently applied plates are acceptable if they are permanently fixed to the jambs. (See Fig. 20).*

4.10.6* Door Protective and Reopening Device. *Elevator doors shall open and close automatically. They shall be provided with a reopening device that will stop and reopen a car door and hoistway door automatically if the door becomes obstructed by an object or person. The device shall be capable of completing these operations without requiring contact for an obstruction passing through the opening at heights of 5 in and 29 in (125 mm and 735 mm) above finish floor (see Fig. 20). Door reopening devices shall remain effective for at least 20 seconds. After such an interval, doors may close in accordance with the requirements of ASME A17.1-1990.*

4.10.7* Door and Signal Timing for Hall Calls. *The minimum acceptable time from notification that a car is answering a call until the doors of that car start to close shall be calculated from the following equation:*

$$T = D/(1.5\ ft/s) \text{ or } T = D/(445\ mm/s)$$

where T total time in seconds and D distance (in feet or millimeters) from a point in the lobby or corridor 60 in (1525 mm) directly in front of the farthest call button controlling that car to the centerline of its hoistway door (see Fig. 21). For cars with in-car lanterns, T begins when the lantern is visible from the vicinity of hall call buttons and an audible signal is sounded. The minimum acceptable notification time shall be 5 seconds.

Automatic operation, call buttons, hall lanterns, raised and braille characters, door protectives and door / signal timing are not provided on both "active" elevators in the Building.

C. BATHROOMS & KITCHENS

None of the bathrooms were designed or built to comply with ADA or LL 58/87.

Clearances: Per §LL 58/87, §RS 4-6, ADA §4.23, bathroom layouts provide insufficient clearances in front of fixtures for maneuverability.

ADA 4.23 Bathrooms, Bathing Facilities, and Shower Rooms.

4.23.1 Minimum Number. Bathrooms, bathing facilities, or shower rooms required to be accessible by 4.1 shall comply with 4.23 and shall be on an accessible route.

4.23.2 Doors. Doors to accessible bathrooms shall comply with 4.13. Doors shall not swing into the floor space required for any fixture.

4.23.3 Clear Floor Space. The accessible fixtures and controls required in 4.23.4, 4.23.5, 4.23.6, 4.23.7, 4.23.8, and 4.23.9 shall be on an accessible route. An unobstructed turning space complying with 4.2.3 shall be provided within an accessible bathroom. The clear floor spaces at fixtures and controls, the accessible route, and the turning space may overlap.*

4.23.4 Water Closets. If toilet stalls are provided, then at least one shall be a standard toilet stall complying with 4.17; where 6 or more stalls are provided, in addition to the stall complying with 4.17.3, at least one stall 36 in (915 mm) wide with an outward swinging, self-closing door and parallel grab bars complying with Fig. 30(d) and 4.26 shall be provided. Water closets in such stalls shall comply with 4.16. If water closets are not in stalls, then at least one shall comply with 4.16.

4.23.5 Urinals. If urinals are provided, then at least one shall comply with 4.18.

4.23.6 Lavatories and Mirrors. If lavatories and mirrors are provided, then at least one of each shall comply with 4.19.

4.23.7 Controls and Dispensers. If controls, dispensers, receptacles, or other equipment are provided, then at least one of each shall be on an accessible route and shall comply with 4.27.

4.23.8 Bathing and Shower Facilities. If tubs or showers are provided, then at least one accessible tub that complies with 4.20 or at least one accessible shower that complies with 4.21 shall be provided.

4.23.9 Medicine Cabinets. If medicine cabinets are provided, at least one shall be located with a usable shelf no higher than 44 in (1120 mm) above the floor space. The floor space shall comply with 4.2.4.*

Grab bar requirements: Per §LL 58/87, §RS 4-6, ADA §4.26, grab bars not installed nor blocking provided in walls for future installation.

Shower and Shower enclosures: Showers do not meet the required size and clear floor space required Per §LL 58/87, §RS 4-6, ADA §4.34.5.5

4.32.4.8 Minimum sized adaptable bathrooms may be shown in figure 53 and figure 54.



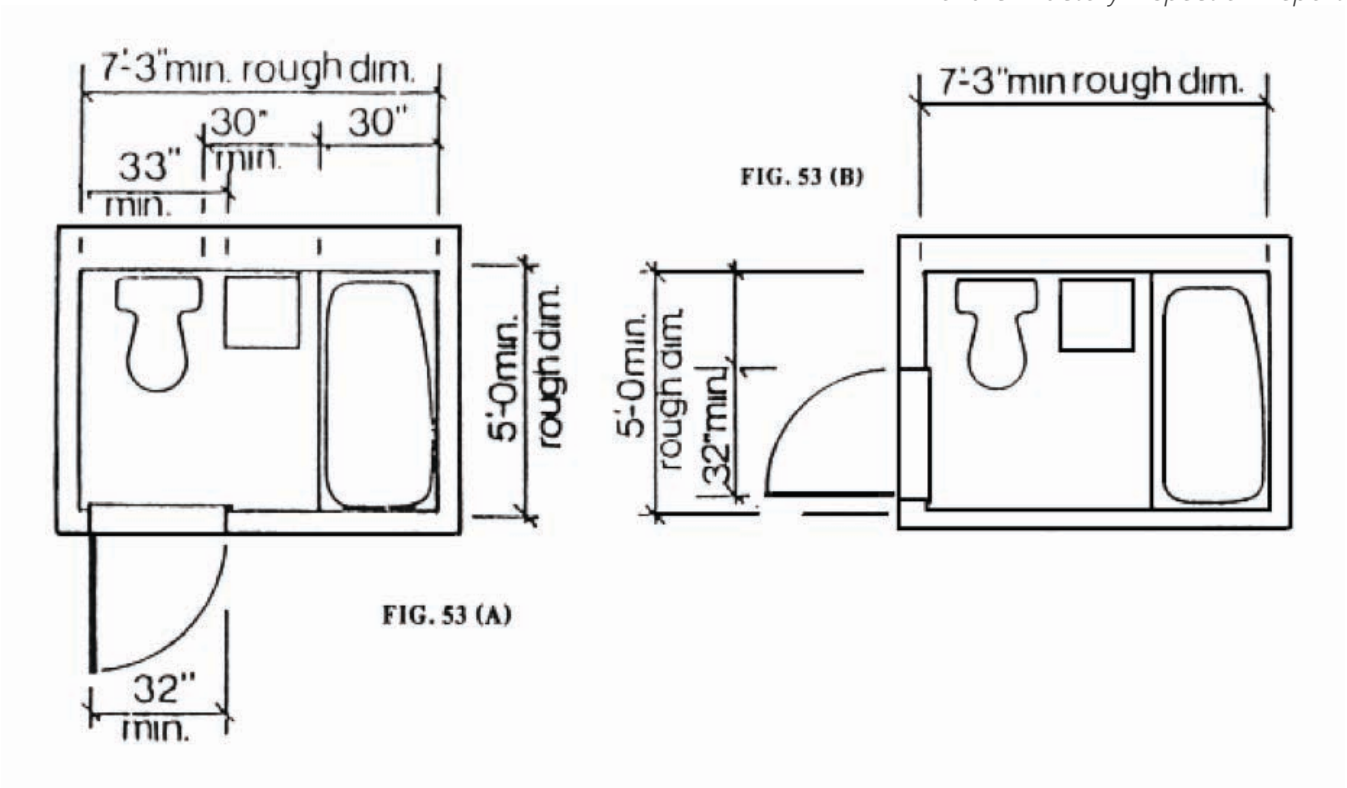


Fig. 53(A) shows desirable minimum conditions. Where such a plan is not possible to attain, then the arrangement in Fig. 53(B) may be acceptable.

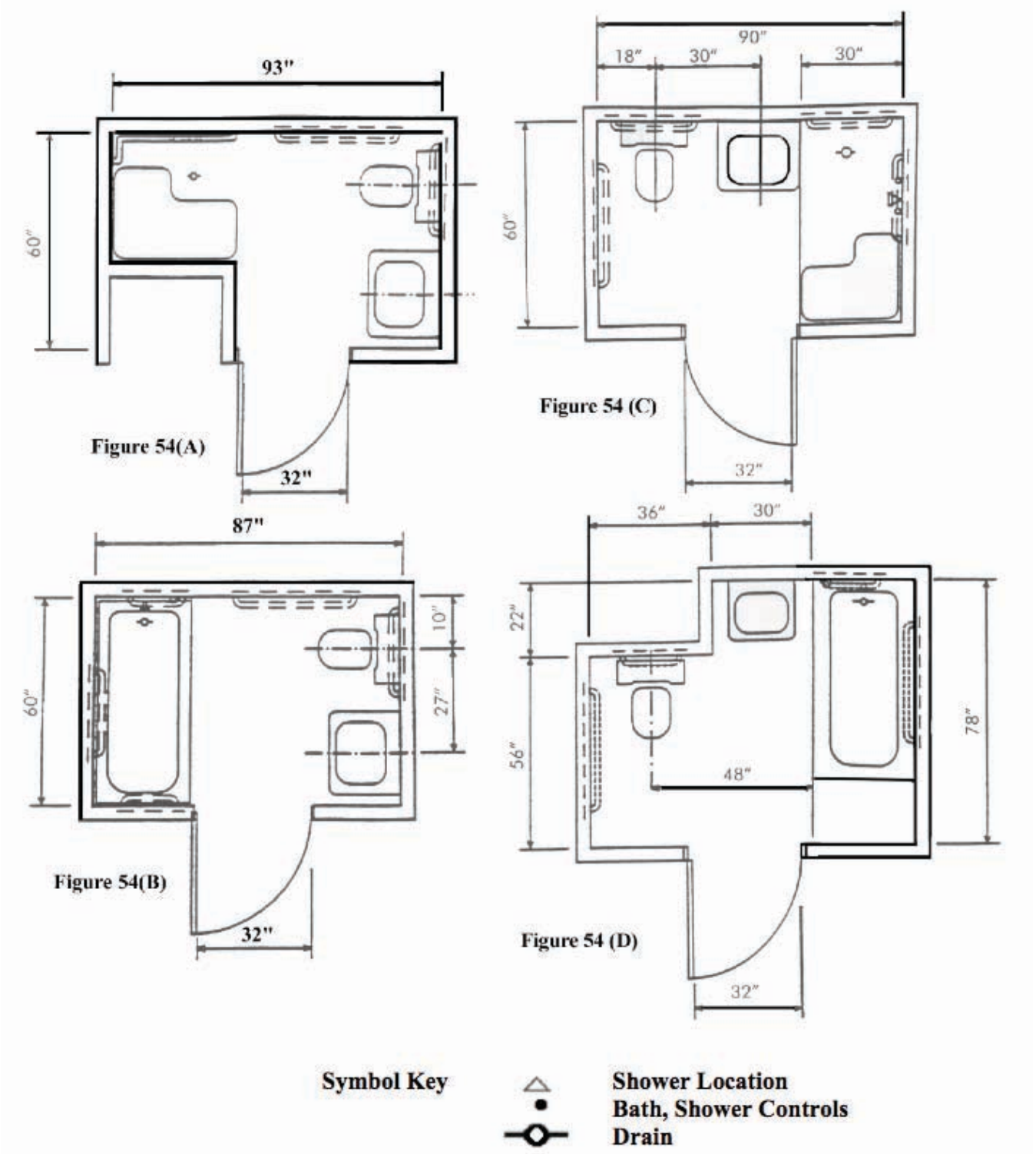
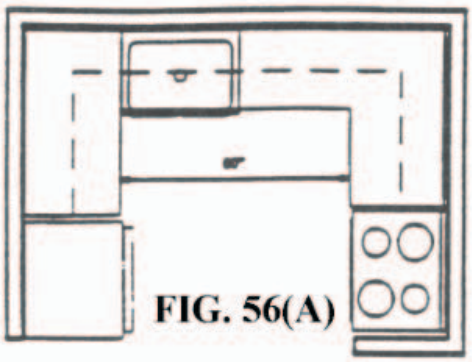
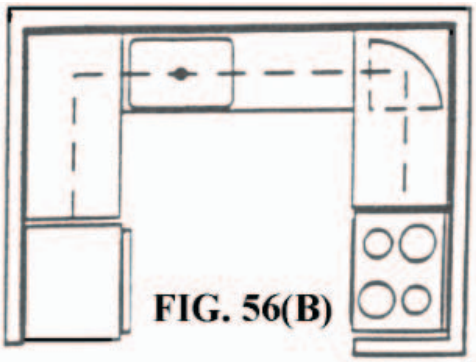


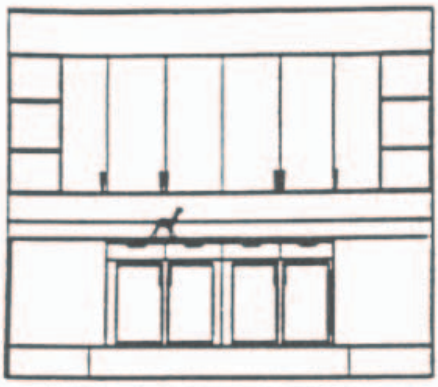
FIGURE 54
MINIMUM SIZED ADAPTABLE BATHROOMS

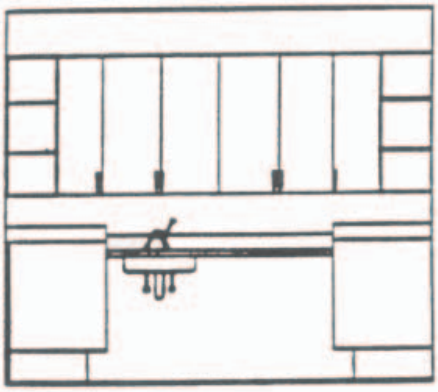
RS §4-6 4.32.5.11 Minimum sized adaptable kitchens or kitchenettes may be as shown in figure 55, figure 56,

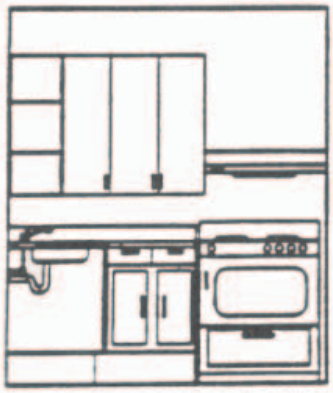
figure 57 and figure 58. In dwelling units where a dishwasher is provided, but where no other space otherwise is available in the kitchen for the installation of a dishwasher, one may be installed under a work surface described in subsection 4.32.5.4; provided that, at the option of a person with a disability residing in the dwelling unit, the dishwasher shall be removed, and the work surface made to conform with said subsection, by and at the sole expense of the owner of the dwelling unit.

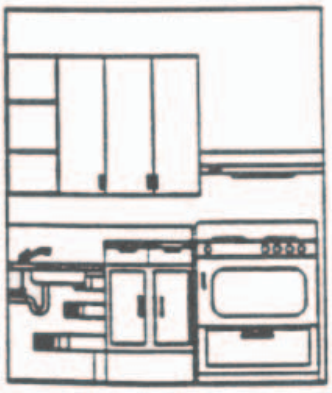












Accessible; before removal of cabinets and base

Cabinets and base removed, counter height lowered

FIGURE 56
EXAMPLE OF ADAPTABLE KITCHEN – U – SHAPED PLAN

No kitchen in the Building is adaptable per figure 56 above.

D. INTERIOR ACCESSIBLE ROUTES (EXIT CORRIDORS AND STAIRWELLS)

Handrails do not exist on both sides of all egress stairs and do not extend at the top and bottom of stairs as per ADA §4.9.4, also the size of the handrail violates graspability under ADA §4.26.2.

ADA §4.9 Stairs.

4.9.4 Handrails. *Stairways shall have handrails at both sides of all stairs. Handrails shall comply with 4.26 and shall have the following features:*

Handrails shall be continuous along both sides of stairs. The inside handrail on switchback or dogleg stairs shall always be continuous (see Fig. 19(a)and (b)).

(2) If handrails are not continuous, they shall extend at least 12 in (305 mm) beyond the top riser and at least 12 in (305 mm) plus the width of one tread beyond the bottom riser. At the top, the extension shall be parallel with the floor or ground surface. At the bottom, the handrail shall continue to slope for a distance of the width of one tread from the bottom riser; the remainder of the extension shall be horizontal (see Fig. 19(c) and (d)). Handrail extensions shall comply with 4.4.

(3) The clear space between handrails and wall shall be 1-1/2 in (38 mm).

(4) Gripping surfaces shall be uninterrupted by newel posts, other construction elements, or obstructions.

(5) Top of handrail gripping surface shall be mounted between 34 in and 38 in (865 mm and 965 mm) above stair nosings.

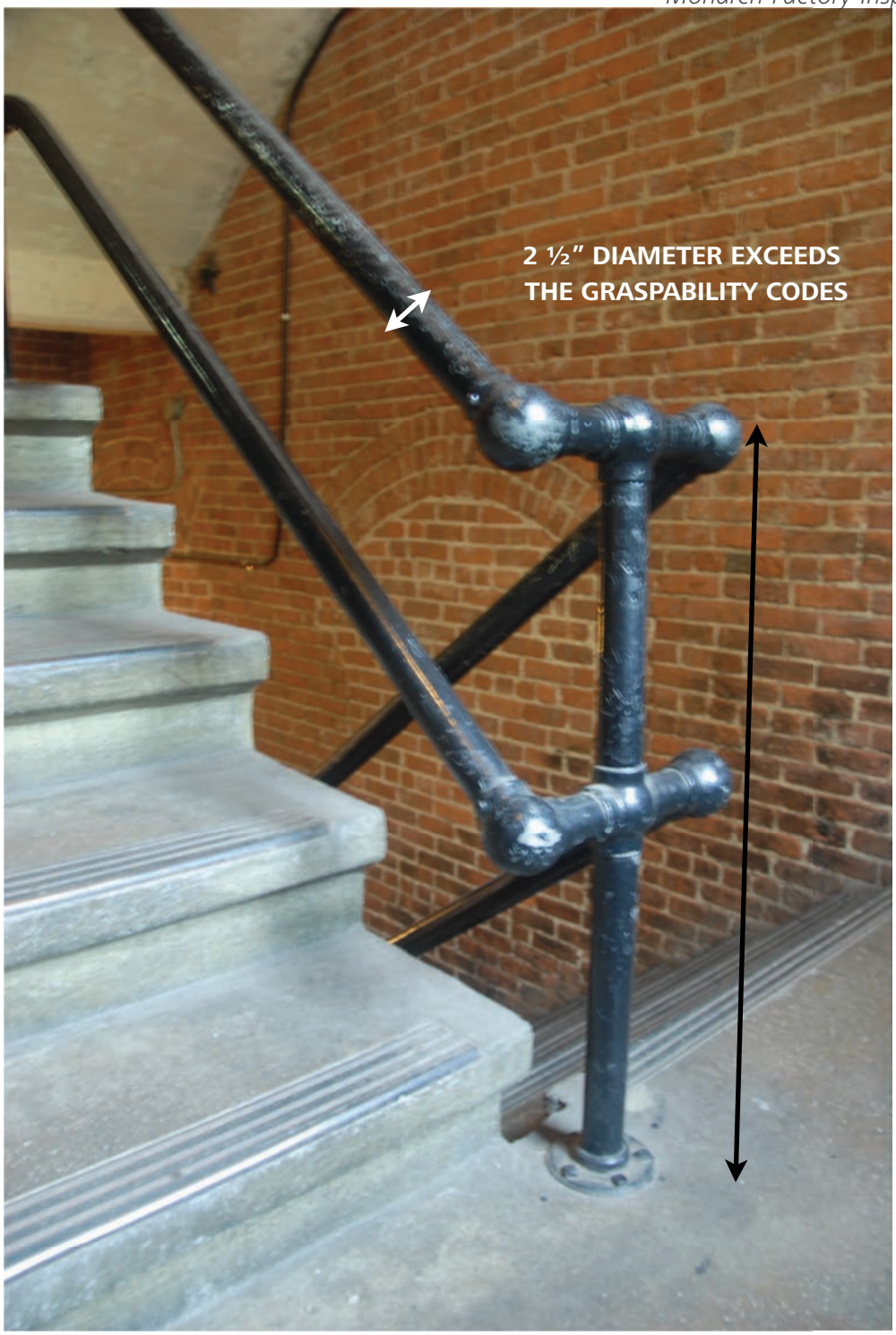
(6) Ends of handrails shall be either rounded or returned smoothly to floor, wall or post.

(7) Handrails shall not rotate within their fittings.

ADA §4.26 Handrails, Grab Bars, and Tub and Shower Seats.

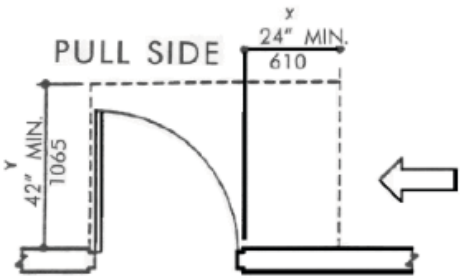
4.26.1 General. All handrails, grab bars, and tub and shower seats required to be accessible by 4.1, 4.8, 4.9, 4.16, 4.17, 4.20 or 4.21 shall comply with 4.26.*

4.26.2 Size and Spacing of Grab Bars and Handrails. The diameter or width of the gripping surfaces of a handrail or grab bar shall be 1-1/4 in to 1-1/2 in (32 mm to 38 mm), or the shape shall provide an equivalent gripping surface. If handrails or grab bars are mounted adjacent to a wall, the space between the wall and the grab bar shall be 1-1/2 in (38 mm) (see Fig. 39(a), (b), (c), and (e)). Handrails may be located in a recess if the recess is a maximum of 3 in (75 mm) deep and extends at least 18 in (455 mm) above the top of the rail (see Fig. 39(d)).*


2 ½" DIAMETER EXCEEDS
THE GRASPABILITY CODES
HEIGHT IS 29.5" AND SHOULD BE
BETWEEN 34 - 38" PER CODE

E. DOOR MANEUVERING CLEARANCES

Per figure 25C in RS §4-6,certain doors within interior accessible routes do not meet the requirements for maneuvering clearances.



Note: y = 48 in (1220 mm)* minimum for rooms, other than powder rooms, with minimum finished dimensions less than 5'-5" x 7'-4"; y = 54 in (1370 mm) minimum if the door has a closer.

LATCH-SIDE APPROACHES - SWINGING DOORS

Figure 25 (C)





ACCESSIBLE MANEUVERING CLEARANCES NOT PROVIDED AT EXIT DOOR OR PRIMARY ENTRANCE

CONCLUSION

It is our opinion, based upon the findings documented in this report, that:

The Monarch Factory Building located at 5 Delevan Street, 19 Delevan Street, 14 Verona Street Brooklyn, N.Y. 11211, does not meet the criteria for substantial rehabilitation as outlined by the DHCR Operational Bulletin 95-2.

ONLY **12%** (or 2 of 17) of the systems **MEET** DHCR requirements for substantial rehabilitation.

82% (or 14 of 17) of the systems **DO NOT MEET** DHCR requirements for substantial rehabilitation.

.- end report